FARMERSVILLE CITY COUNCIL

MEETING AGENDA

May 26, 2026 at 6:00 p.m.
City Hall, 909 W. Visalia Rd.
Farmersville, California 93223

Mayor
Tina Hernandez
Mayor Pro Tem
Araceli Ochoa
Council Members
Gregorio Gomez
Paul Boyer
Danny Valdavinos

Pending no technical difficulties, the City Council meeting will also be streamed (for observation only) via Zoom and accessed as follows:
Please dial 1-669-900-6833
Meeting ID:831 6110 3599
Password: 549466

Notice is hereby given that the Farmersville City Council will hold a Regular Meeting on Tuesday, May 26, 2026, at 6:00 p.m. in person at City Hall located at 909 W. Visalia Rd. in Farmersville California, 93223.

Staff Reports related to items on the agenda are available on the City's website at https://www.cityoffarmersville-ca.gov/ and available for viewing at City Hall.

A. CALL TO ORDER SESSION REGULAR COUNCIL MEETING

B. ROLL CALL

C. INVOCATION
Presented by Mayor Hernandez

D. PLEDGE OF ALLEGIANCE
Led by Mayor Hernandez

E. APPROVAL OF AGENDA

F. PUBLIC COMMENTS
The public is invited to comment on any subject under the jurisdiction of the Farmersville City Council. Please note that speakers that wish to comment on a Regular Item or Public Hearing on tonight's agenda will have an opportunity to speak when public comment for that item is requested by the Mayor. Comments shall be limited to two (2) minutes per person, with twenty (20) minutes for the total comment period, unless otherwise indicated by the Mayor.

The public may also choose to submit a comment before the meeting via email. Public comments received via email will be distributed to the Council prior to the start of the meeting and incorporated into the official minutes; however, they will not be read aloud. Under state law, matters presented under public comment cannot be acted upon by the Council at this time.

G. SPECIAL PRESENTATIONS

H. CONSENT CALENDAR

Items listed under the Consent Calendar are considered routine and will be enacted by one motion. There will be no separate discussion of these matters unless a request is made and then the item will be removed from the Consent Calendar to be discussed and voted upon by a separate motion.

1. Approval of May 11, 2026, regular meeting minutes
2. Approval Warrant Register April 2026

I. ACTION ITEMS

Comments related to Action and Public Hearing Items are limited to two (2) minutes per speaker, for a maximum of 20 minutes per item. The Mayor may reasonably limit or extend the public comment period to preserve the Council's interest in conducting efficient, orderly meetings.

1. Action Pertaining to the approval of the City Manager Contract
2. Approval of 2026 Task Order No. 1 for Design-Farmersville Pedestrian Improvement Project.

J. PUBLIC HEARINGS

1. Resolution 2026-016 Calling for the Submission to the Voters a Measure Relating to the Enactment of a Ten Percent (10%) Transient Occupancy Tax (TOT).

K. DISCUSSION ITEMS

L. COUNCIL REPORTS

M. CITY MANAGER/DEPARTMENT COMMUNICATIONS

N. GENERAL BUSINESS

Council members may raise issues, request future agenda items, or provide comments regarding City business.

O. FUTURE AGENDA ITEMS

Description	Responsible Party	Agenda Date
Sewer DIF	City Manager	TBD
Sign Ordinance	Fire Chief	July 2026
Potential Solar Project	City Manager	TBD
Potential AI Solutions	City Manager	TBD
City Representation on Committees –	City Manager	TBD

Water Blueprint for the San Joaquin Valley and San Joaquin Valley Collaborative Action Program		
Incentives for Commercial Development	City Manager	July 2026
Cannabis Revenue	City Manager	5-26-2026
Downtown Specific Plan	City Planner	TBD
C-Train Ordinance	City Manager	TBD
ADU Workshop	City Planner	TBD
MOU for positive PR with Visalia Talks	City Manager	TBD

P. EXECUTIVE (CLOSED) SESSION

Public Employment Section 54957- Farmersville Community Center
Public Employee Performance 54957- Account Clerk

Q. REGULAR MEETING ADJOURNMENT

State of California)
County of Tulare) ss.
City of Farmersville)

I declare under penalty of perjury that I am employed by the City of Farmersville, in the City Manager's Office; and that I posted this Agenda on the bulletin board outside of City Hall, 909 W. Visalia Rd. Farmersville, CA 93223 on May 22, 2026 and online on the City of Farmersville website: https://www.cityoffarmersville-ca.gov/.

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Rochelle Giovani , City Clerk

In compliance with the Americans with Disabilities Act, and the California Ralph M. Brown Act, if you need special assistance to participate in this meeting, or to be able to access this agenda and documents in the agenda packet, please contact the City Clerk (559)747-0458. Notification prior to the meeting will enable the City to make reasonable arrangements to ensure accessibility to this meeting and/or provision of an appropriate alternative format of the agenda and documents in the agenda packet. (28 CFR 35.102-35. 104 ADA Title II).

Materials related to an item on this Agenda submitted to the legislative body after distribution of the agenda packet are available for public inspection at Farmersville City Hall, 909 W. Visalia Rd., Farmersville CA 93223 during normal business hours.

FARMERSVILLE CITY COUNCIL

MEETING AGENDA MINUTES

May 11, 2026 at 6:00 p.m.
City Hall, 909 W. Visalia Rd.
Farmersville, California 93223

Pending no technical difficulties, the City Council meeting will also be streamed (for observation only) via Zoom and accessed as follows:
Please dial 1-669-900-6833
Meeting ID:841 2878 2400
Password: 190531

Mayor
Tina Hernandez
Mayor Pro Tem
Araceli Ochoa
Council Members
Gregorio Gomez
Paul Boyer
Danny Valdavinos

Notice is hereby given that the Farmersville City Council will hold a Regular Meeting on Monday, May 11, 2026, at 6:00 p.m. in person at City Hall located at 909 W. Visalia Rd. in Farmersville California, 93223.

Staff Reports related to items on the agenda are available on the City's website at https://www.cityoffarmersville-ca.gov/ and available for viewing at City Hall.

A. CALL TO ORDER SESSION REGULAR COUNCIL MEETING *6:01PM*

B. ROLL CALL

Mayor Tina Hernandez
Mayor Pro Tem Araceli Ochoa
Councilmember Greg Gomez
Councilmember Paul Boyer
Councilmember Danny Valdovinos

C. INVOCATION

Presented by Mayor Hernandez

D. PLEDGE OF ALLEGIANCE

Led by Mayor Hernandez

E. APPROVAL OF AGENDA

Council Action: *It was motioned by Mayor Pro Tem Ochoa, seconded by Councilmember Valdovinos and approved with a 5-0 vote.*

F. PUBLIC COMMENTS

The public is invited to comment on any subject under the jurisdiction of the Farmersville City Council. Please note that speakers that wish to comment on a Regular Item or Public Hearing on tonight's agenda will have an opportunity to speak when public comment for that item is requested by the Mayor. Comments shall be limited to two (2) minutes per person, with twenty (20) minutes for the total comment period, unless otherwise indicated by the Mayor.

The public may also choose to submit a comment before the meeting via email. Public comments received via email will be distributed to the Council prior to the start of the meeting and incorporated into the official minutes; however, they will not be read aloud. Under state law, matters presented under public comment cannot be acted upon by the Council at this time.

None

G. SPECIAL PRESENTATIONS

1. Proclamation- Pastor Brad Taylor
   Mayor Tina Hernandez presented Pastor Taylor with a Proclamation

2. Lori Rhinebeck-Exeter Public Cemetery District
   Ms. Rhinebeck gave a brief presentation regarding the Exeter Public Cemetery and explained Measure O.

H. CONSENT CALENDAR

Items listed under the Consent Calendar are considered routine and will be enacted by one motion. There will be no separate discussion of these matters unless a request is made and then the item will be removed from the Consent Calendar to be discussed and voted upon by a separate motion.

1. Approval of April 27, 2026, regular meeting minutes
2. SB 1359- Gas Transition Responsibility and Electrification Act
3. Ordering City Council Elections, Consolidation of Elections; Specifications of the Election Order, Enacting a Ten Percent (10%) Transient Occupancy Tax on Hotel and Specific Rendered to the District.
4. Request For Event Funding-Futsal Soccer Club
5. Resolution 2026-017 prepare the Engineers Report for Farmersville's Landscape and Lighting Assessment Districts for Fiscal Year 2025-2026.

Mayor Pro Tem Ochoa pulled item 4 Event Funding for Futsal Soccer Club to review with Attorney.

Council Action: *It was motioned to approve consent items 1-3 and 5 by Councilmember Valdovinos, seconded by Councilmember Gomez and approved with a 5-0 vote.*

I. ACTION ITEMS

Comments related to Action and Public Hearing Items are limited to two (2) minutes per speaker, for a maximum of 20 minutes per item. The Mayor may reasonably limit or extend the public comment period to preserve the Council's interest in conducting efficient, orderly meetings.

1. Establishment of Board Members for Farmersville Community Cares Nonprofit

Councilmember Gomez requested that Action Item 1 be tabled so he can review it with the City Attorney.

Council Action: *It was motioned by Councilmember Gomez, seconded by Councilmember Valdovinos and approved with a 5-0 vote.*

2. Approval of Farmers Market Request for Proposals (RFP)

Council Action: *It was motioned by Councilmember Gomez, seconded by Mayor Pro Tem Ochoa and approved with a 5-0 vote.*

3. Consideration of Relocating the Senior Center to the Transit Center

Council Action: *It was motioned by Mayor Pro Tem Ochoa, seconded by Mayor Hernandez and approved with a 5-0 vote.*

4. Approval of Senior Center Furnishing and Equipment Purchases

Council Action: *It was motioned by Mayor Pro Tem Ochoa, seconded by Councilmember Valdovinos and approved with a 5-0 vote.*

J. PUBLIC HEARINGS

None

K. DISCUSSION ITEMS

Presentation on Grant and Funding Opportunities (ATP, SS4A, HSIP, SSP Round 5)

The Council directed staff to start the process for the Safe Streets and Roads for All (SS4A) program.

L. COUNCIL REPORTS

Councilmembers reported on recent events and activities. Comments were informational only, and no action was taken.

M. CITY MANAGER/DEPARTMENT COMMUNICATIONS

The City Manager reported on recent events and discussed items of interest. Comments were informational only, and no action was taken.

N. GENERAL BUSINESS

Council members may raise issues, request future agenda items, or provide comments regarding City business.

None

O. FUTURE AGENDA ITEMS

Description	Responsible Party	Agenda Date
Sewer DIF	City Manager	TBD
Sign Ordinance	Fire Chief	July 2026
Potential Solar Project	City Manager	TBD
Potential AI Solutions	City Manager	TBD
City Representation on Committees – Water Blueprint for the San Joaquin Valley and San Joaquin Valley Collaborative Action Program	City Manager	TBD
Incentives for Commercial Development	City Manager	July 2026
Cannabis Revenue	City Manager	5-26-2026
Downtown Specific Plan	City Planner	TBD
C-Train Ordinance	City Manager	TBD
ADU Workshop	City Planner	TBD
MOU for positive PR with Visalia Talks	City Manager	TBD

P. EXECUTIVE (CLOSED) SESSION

None

Q. REGULAR MEETING ADJOURNMENT

Mayor Hernandez adjourned the meeting at 8:05pm

State of California)
County of Tulare) ss.
City of Farmersville)

I declare under penalty of perjury that I am employed by the City of Farmersville, in the City Manager's Office; and that I posted this Agenda on the bulletin board outside of City Hall, 909 W. Visalia Rd. Farmersville, CA 93223 on May 8, 2026 and online on the City of Farmersville website: https://www.cityoffarmersville-ca.gov/.

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Rochelle Giovani , City Clerk

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STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 26, 2026

Item #: 2
Consent

DEPARTMENT: Finance

FROM: Interim City Manager Jay Brock

AGENDA TITLE: Approval of April 2026 Warrant Registers

ACTION & RECOMMENDATION

It is respectfully recommended that the City Council approve the warrant registers as presented for the period. This reporting period represents warrants issued for the Fiscal Year 2025-2026.

BACKGROUND | ANALYSIS

Preparation and presentation of the Warrant Register has been coordinated with the Finance Department and the City Manager. The Warrant Register contains a listing of all payments made by the City for goods and services during the specified period. These payments include routine expenditures such as payroll-related costs, utilities, supplies, contract services, and other operational expenses authorized in the adopted budget.

FISCAL IMPACT

Each demand has been audited for accuracy and sufficiency of funds for payment. The current Warrant Registers for April 2026 total $812,974.70 , inclusive of the following batches allowed for in the adopted budget for Fiscal Year 2025/2026:

APRIL GENERAL FUND WARRANTS				
AP DATE	**MONTHLY BATCH TOTAL**		**START**	**END**
4/2/2026	$	30,800.29	200386	200420
4/8/2026	$	266.28	200421	200421
4/10/2026	$	8,345.00	200422	200432
4/17/2026	$	262,813.10	200433	200479
4/23/2026	$	550.00	200480	200490
TOTAL WARRANTS:	**$**	**579,974.67**		
APRIL PAYROLL WARRANTS				
PAYROLL DATE	**BATCH TOTAL**		**START**	**END**
4/10/2026	$	100,331.99	18100	18142
04/10/2026 SPECIAL	$	1,167.97	18143	18143
04/09/2026 SPECIAL	$	25,293.60	18144	18144
4/24/2026	$	93,872.40	18145	18190
04/23/26 SPECIAL	$	4,138.56	18191	18191
4/30/2026 SPECIAL	$	8,195.51	18193	18193
TOTAL PAYROLL:	**$**	**233,000.03**		
GRAND TOTAL:	**$**	**812,974.70**		

ATTACHMENTS

1. Warrant Register(s)
2. Payroll Register (s)

CITY OF FARMERSVILLE

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR	NAME	UNCLEARED	CLEARED	BATCH	CLEAR DATE
200386	04/02/2026	PRINTED	000542	THOMSON REUTERS	299.41			
DOC	INVOICE NO	ORG	OBJ	PROJ	AMOUNT			
53771	853267411	01411	5205		299.41			
200387	04/02/2026	PRINTED	000633	CHARTER COMMUNICATIONS	3,382.22			
53759	170047601032126	01411	5211		3,382.22			
200388	04/02/2026	PRINTED	000897	DUNN'S SAND, INC	1,874.85			
53778	70184	21425	5203		1,874.85			
200389	04/02/2026	PRINTED	000908	EWING IRRIGATION PRODUCTS	871.21			
53758	26134012	35425	5203		864.30			
53784	29337314	35425	5203		6.91			
200390	04/02/2026	PRINTED	000990	TERMINIX	334.00			
53763	469644953	39425	5206	HLTHY	90.00			
53764	469643256	01411	5205		103.00			
53765	469643142	01406	5205		141.00			
200391	04/02/2026	PRINTED	001152	QUINN RENTAL SERVICES	6,876.65			
53760	WON50036406	04425	5205		2,465.27			
53761	WON50036407	04425	5205		4,411.38			
200392	04/02/2026	PRINTED	001207	PROFESSIONAL PRINT & MAIL	33.30			
53733	128921 TAX	02425	5205		33.30			
200393	04/02/2026	PRINTED	001242	CALIFORNIA BUSINESS MACHI	415.17			
53770	585241	01406	5205		138.39			
53770	585241	01411	5205		138.39			
53770	585241	01420	5205		138.39			
200394	04/02/2026	PRINTED	001247	LEAF	302.45			
53791	19921938	01420	5205		302.45			
200395	04/02/2026	PRINTED	001276	CALIFORNIA TURF EQUIPMENT	10,958.15			
53782	712223	01425	5203	PARKS	10,958.15			
200396	04/02/2026	PRINTED	001456	FRANCHISE TAX BOARD	524.86			
53789	29050012481-#2	01	2230		524.86			
200397	04/02/2026	PRINTED	001481	HINDERLITER DELLAMAS& ASS	226.69			
53736	SIN061428	01414	5205		226.69			
200398	04/02/2026	PRINTED	001555	METLIFE	6,453.39			
53790	BENIFITS 4/1/2026-4/	01404	5121		6,453.39			
200399	04/02/2026	PRINTED	001633	PITNEY BOWES	253.14			
53776	800-090-0402-6279MAR	01406	5205		218.24			
53780	3107734439	01406	5205		34.90			

CITY OF FARMERSVILLE

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR	NAME	UNCLEARED	CLEARED	BATCH	CLEAR DATE
200400	04/02/2026	PRINTED	001695	SUPERIOR POOL PRODUCTS LL	3,015.14			

DOC	INVOICE NO	ORG	OBJ	PROJ	AMOUNT
53757	6K025477	01425	5202		211.30
53772	6K025455	01425	5205		117.72
53781	Q2034175	01425	5202		2,686.12

200401	04/02/2026	PRINTED	002137	4CREEKS, INC.	42,771.92			
	53750			4C110334	26425	5516	5,580.00	
	53751			4C109939	01411	5205	343.00	
	53752			4C109942	02425	5205	2,755.00	
	53753			4C109947	01414	5205	322.50	
	53754			4C109946	01414	5205	11,090.50	
	53755			4C109944	01414	5205	22,680.92	
200402	04/02/2026	PRINTED	002167	ADVANCED BUILDING MAINTEN	1,149.75			
	53756			INV45355	01406	5205	1,149.75	
200403	04/02/2026	PRINTED	002285	THE POLICE AND SHERIFFS P	20.00			
	53787			132119	01411	5202	20.00	
200404	04/02/2026	PRINTED	002304	KINGS MEDICAL CENTER	101.00			
	53767			329167	01411	5211	101.00	
200405	04/02/2026	PRINTED	002406	MOORE TWINING ASSOCIATES,	1,405.00			
	53739			260331	02425	5205	315.00	
	53740			2603170	02425	5205	135.00	
	53741			2603103	02425	5205	640.00	
	53742			2603032	02425	5205	315.00	
200406	04/02/2026	PRINTED	002445	MARY VALENTI, PHD PSYCHOL	500.00			
	53773			DANNY CASTANEDA	01411	5205	500.00	
200407	04/02/2026	PRINTED	002472	PACIFIC STORAGE COMPANY	196.12			
	53735			5306153	01411	5205	98.06	
	53735			5306153	01406	5205	98.06	
200408	04/02/2026	PRINTED	002538	TELSTAR INSTRUMENTS	1,671.00			
	53768			13491	04425	5205	1,671.00	
200409	04/02/2026	PRINTED	002609	WILLIAMS INVESTIGATIVE AG	1,290.62			
	53792			26-4420	01411	5205	1,290.62	
200410	04/02/2026	PRINTED	002709	MARIA ALVAREZ	473.00			
	53762			FBI-LEED LEADERSHIP	01411	5208	473.00	
200411	04/02/2026	PRINTED	002803	KEY EVIDENCE INVENTORY	3,733.33			
	53793			STATMENT #3	01411	5205	3,733.33	
200412	04/02/2026	PRINTED	002811	ADAMSON POLICE PRODUCTS	770.96			
	53734			INV448950	01420	5504	770.96	

CITY OF FARMERSVILLE

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR	NAME	UNCLEARED	CLEARED	BATCH	CLEAR DATE
200413	04/02/2026	PRINTED	003005	AWARDS & SIGNS UNLIMITED	59.68			

DOC	INVOICE NO	ORG	OBJ	PROJ	AMOUNT
53785	16463	01401	5205		59.68
200414	04/02/2026	PRINTED	006100	CENTRAL SAN JOAQUIN VALLE	149,832.00
53795	INV0488	01404	5117		870.20
53795	INV0488	01411	5117		56,528.86
53795	INV0488	14411	5117	SLESF	8,016.35
53795	INV0488	01415	5117		6,373.91
53795	INV0488	01425	5117		16,820.03
53795	INV0488	01420	5117		25,495.62
53795	INV0488	01414	5117		207.19
53795	INV0488	02404	5117		1,015.23
53795	INV0488	02425	5117		11,809.81
53795	INV0488	04404	5117		973.79
53795	INV0488	04425	5117		11,094.06
53795	INV0488	06404	5117		207.19
53795	INV0488	06425	5117		1,073.62
53795	INV0488	21404	5117		41.44
53795	INV0488	21425	5117		8,588.95
53795	INV0488	35425	5117		715.75
200415	04/02/2026	PRINTED	007550	CENTRAL VALLEY BUSINESS F	1,103.04
53786	266119	01411	5201		1,103.04
200416	04/02/2026	PRINTED	008250	COLLINS & SCHOETTLER	25,584.00
53737	224471	01414	5205		23,270.00
53738	224472	01414	5205		2,314.00
200417	04/02/2026	PRINTED	009940	DEPARTMENT OF JUSTICE	264.00
53788	029859	01411	5205		194.00
53794	034792	01411	5205		70.00
200418	04/02/2026	PRINTED	012000	FARLEY LAW FIRM	38,712.68
53743	V3357-WWTP	01406	5205		75.25
53744	V4715-880 BRUNDAGE	01406	5205		3,624.93
53745	V4799- SABRINA VERON	01406	5205		21,882.75
53746	V4948- INVESTIGATION	01406	5205		7,405.25
53747	V4949-TRANSIENT OCCU	01406	5205		81.00
53748	V4950 RETAINER	01406	5205		4,500.00
53749	V858 GENERAL MATTER	01406	5205		1,143.50
200419	04/02/2026	PRINTED	048030	TULARE COUNTY GENERAL SER	72.98
53769	26434	01411	5201		72.98
200420	04/02/2026	PRINTED	051550	VERIZON WIRELESS	2,468.58
53775	6138853046	01411	5211		822.86
53775	6138853046	01420	5211		822.86
53775	6138853046	04425	5211		822.86

CHECK #	CHECK DATE	TYPE	VENDOR NAME	UNCLEARED	CLEARED	BATCH	CLEAR DATE
200421	04/08/2026	PRINTED	001261 GOMEZ, GREG	266.28			
DOC	INVOICE NO	ORG	OBJ PROJ	AMOUNT			
53796	COSTA MESA-ROOM/PARK	01401	5208	266.28			
200422	04/10/2026	PRINTED	001365 HAYASHI, CHASEN	820.00			
53800	1365-STIPEND MAR 26	01420	5208	820.00			
200423	04/10/2026	PRINTED	002295 MOORE, SKYLER Q	1,050.00			
53802	2295-STIPEND MAR 26	01420	5208	1,050.00			
200424	04/10/2026	PRINTED	002296 HOPF, LATHAN A	1,050.00			
53807	2296- STIPEND MAR 26	01420	5208	1,050.00			
200425	04/10/2026	PRINTED	002311 FLAMING, EMILEE A	1,200.00			
53803	2311-STIPEND MAR 26	01420	5208	1,200.00			
200426	04/10/2026	PRINTED	002429 BENEDETTA, MICHAEL RAY	875.00			
53805	2429-STIPEND MAR 26	01420	5208	875.00			
200427	04/10/2026	PRINTED	002497 CRUZ, ALEXIS VARGAS	700.00			
53801	2497- STIPEND MAR 26	01420	5203	700.00			
200428	04/10/2026	PRINTED	002680 FOX, BROOKE	1,225.00			
53804	2680-STIPEND MAR 26	01420	5208	1,225.00			
200429	04/10/2026	PRINTED	002711 GARRISON, WILLIAM	175.00			
53799	2711-STIPEND MAR 26	01420	5208	175.00			
200430	04/10/2026	PRINTED	002742 XAVIER VELASQUEZ	175.00			
53798	2742- STIPEND MAR 26	01420	5208	175.00			
200431	04/10/2026	PRINTED	002814 MARTIN MONTES	875.00			
53797	2814-STIPEND MAR 26	01420	5208	875.00			
200432	04/10/2026	PRINTED	011000 FARIAS, RUBEN	200.00			
53806	11000-STIPEND MAR 26	01420	5208	200.00			
200433	04/17/2026	PRINTED	000908 EWING IRRIGATION PRODUCTS	1,864.02			
53897	29565628	01425	5203 PARKS	864.30			
53898	29602799	01425	5203 PARKS	499.86			
53899	26145568	01425	5203 PARKS	499.86			
200434	04/17/2026	PRINTED	001005 AAA QUALITY SERVICES, INC	104.50			
53888	00364383	06404	5116	104.50			
200435	04/17/2026	PRINTED	001015 ABLE INDUSTRIES, INC	5,412.00			
53876	326025	01425	5203	5,412.00			
200436	04/17/2026	PRINTED	001024 VISALIA TIRE & WHEEL	562.17			

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR NAME				UNCLEARED	CLEARED	BATCH	CLEAR DATE
53859		135548B		01425	5204		456.54			
DOC		INVOICE NO		ORG	OBJ	PROJ	AMOUNT			
53891		135696B		01420	5204		105.63			
200437	04/17/2026	PRINTED	001207 PROFESSIONAL PRINT & MAIL				5,469.86			
53810		129339		02425	5205		413.53			
53810		129339		04425	5205		613.34			
53810		129339		06425	5205		1,708.06			
53864		12933		02425	5205		413.53			
53864		12933		04425	5205		613.34			
53864		12933		06425	5205		1,708.06			
200438	04/17/2026	PRINTED	001247 LEAF				604.90			
53834		20071850		01411	5205		302.45			
53834		20071850		01420	5205		302.45			
200439	04/17/2026	PRINTED	001261 GOMEZ, GREG				396.36			
53892		2026 CITY LEADERS		01401	5208		396.36			
200440	04/17/2026	PRINTED	001276 CALIFORNIA TURF EQUIPMENT				135.63			
53887		713440		01425	5203	PARKS	135.63			
200441	04/17/2026	PRINTED	001378 MID VALLEY DISPOSAL				7,642.77			
53815		3427832		06425	5205		708.97			
53816		3491996		04425	5202		4,649.94			
53817		3491854		06425	5205		2,283.86			
200442	04/17/2026	PRINTED	001456 FRANCHISE TAX BOARD				495.49			
53822		29050012481#3		01	2230		495.49			
200443	04/17/2026	PRINTED	001584 L.N. CURTIS AND SONS				1,014.00			
53900		INV1049912		01420	5204		1,014.00			
200444	04/17/2026	PRINTED	001614 CITIZENS BUSINESS BANK				11,936.05			
53851		FEB 2026 ONE POLICE		103411	5514		7,002.64			
53852		FEB 2026 25-001		103411	5514		4,933.41			
200445	04/17/2026	PRINTED	001695 SUPERIOR POOL PRODUCTS LL				575.82			
53818		6K02404		02425	5205		77.10			
53820		6K025706		02425	5203		498.72			
200446	04/17/2026	PRINTED	001708 NHA ADVISORS, LLC				600.00			
53860		01965		04425	5205		600.00			
200447	04/17/2026	PRINTED	001762 GRISWOLD, LASALLE, COBB,				26,129.52			
53867		23563		01404	5205		23,660.71			
53868		23564		01404	5205		830.07			
53869		23577		01404	5205		1,638.74			
200448	04/17/2026	PRINTED	002100 AT&T MOBILITY				1,310.80			

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR	NAME				UNCLEARED	CLEARED	BATCH	CLEAR DATE
	53831		287309535277X0410202		01411	5211		45.48			
	DOC		INVOICE NO		ORG	OBJ	PROJ	AMOUNT			
	53831		287309535277X0410202		01415	5211		12.87			
	53831		287309535277X0410202		02425	5211		5.15			
	53831		287309535277X0410202		04415	5211		5.15			
	53831		287309535277X0410202		06415	5211		2.57			
	53831		287309535277X0410202		01415	5211		100.00			
	53831		287309535277X0410202		02404	5211		79.54			
	53831		287309535277X0410202		04404	5211		70.45			
	53831		287309535277X0410202		06404	5211		18.18			
	53831		287309535277X0410202		21404	5211		4.55			
	53831		287309535277X0410202		01425	5211		149.78			
	53831		287309535277X0410202		02425	5211		177.72			
	53831		287309535277X0410202		04425	5211		173.17			
	53831		287309535277X0410202		06425	5211		14.40			
	53831		287309535277X0410202		21425	5211		101.42			
	53831		287309535277X0410202		35425	5211		7.07			
	53837		000025065007		01404	5201		31.91			
	53838		000025066547		01404	5201		19.83			
	53840		00025066546		01404	5201		118.98			
	53841		000025066545		01420	5201		40.81			
	53842		0000025065009		01404	5201		31.91			
	53843		000025066544		01404	5201		99.86			
200449	04/17/2026	PRINTED	002203	WESTSCAPES, INC				5,698.00			
	53835		23261		01425	5205		2,354.00			
	53836		23262		35425	5205		3,344.00			
200450	04/17/2026	PRINTED	002228	CENTRAL CAL WATERWORKS, I				29,037.70			
	53849		24867		04425	5205		26,479.00			
	53850		24888		02425	5205		2,558.70			
200451	04/17/2026	PRINTED	002267	TOWNSEND PUBLIC AFFAIRS,				5,500.00			
	53871		25119		01404	5205		5,500.00			
200452	04/17/2026	PRINTED	002285	THE POLICE AND SHERIFFS P				40.00			
	53809		133092		01411	5202		40.00			
200453	04/17/2026	PRINTED	002294	ROBERT HALF INTERNATIONAL				4,732.00			
	53862		66094876		01404	5205		2,600.00			
	53863		66075030		01404	5205		2,132.00			
200454	04/17/2026	PRINTED	002307	EMERGENCY VEHICLE GROUP I				1,807.77			
	53901		46356		01420	5203		1,169.54			
	53902		46338		01420	5203		191.61			
	53903		46336		01420	5203		446.62			
200455	04/17/2026	PRINTED	002384	RINCON TREE SERVICE				6,400.00			
	53885		ROYS PARK		01425	5203	PARKS	6,400.00			

AP CHECK RECONCILIATION REGISTER

FOR CASH ACCOUNT: 01 1100 FOR: Cleared and Uncleared

CHECK #	CHECK DATE	TYPE	VENDOR	NAME	UNCLEARED	CLEARED	BATCH	CLEAR DATE
200456	04/17/2026	PRINTED	002406	MOORE TWINING ASSOCIATES,	1,160.00			
DOC	INVOICE NO		ORG	OBJ	PROJ	AMOUNT		
53844	2603654		02425	5205		160.00		
53845	2603667		02425	5205		315.00		
53846	2603557		02425	5205		160.00		
53847	2603484		02425	5205		210.00		
53848	2604071		02425	5205		315.00		
200457	04/17/2026	PRINTED	002425	FIRST AMERICAN DATA TREE,	3,000.00			
53906	20200410226		01414	5205	3,000.00			
200458	04/17/2026	PRINTED	002462	SCA OF CA, LLC	4,595.00			
53893	2026-002180		06425	5203	STSWP 4,595.00			
200460	04/17/2026	PRINTED	002593	SMOKIN BURROW RODENT CONT	1,500.00			
53883	5634		01425	5205	687.50			
53884	5635		01425	5205	812.50			
200461	04/17/2026	PRINTED	002713	JOSHUA LUJAN	1,075.00			
53905	POST/SUPERVISORY SCH		01411	5208	1,075.00			
200462	04/17/2026	PRINTED	002730	LEMON TREE PROPERTY MANAG	3,425.00			
53870	1122		01404	5205	3,425.00			
200463	04/17/2026	PRINTED	002752	ODP BUSINESS SOLUTIONS, L	56.14			
53878	462092762001		01411	5201	56.14			
200464	04/17/2026	PRINTED	002812	1-800-BOARDUP OF VISALIA	3,923.51			
53894	7056		01415	5205	2,280.59			
53896	7053		01415	5205	1,642.92			
200465	04/17/2026	PRINTED	002813	ESP COMPUTER CONSULTING	7,122.00			
53874	2813		01404	5205	80.00			
53875	54603		01404	5205	7,042.00			
200466	04/17/2026	PRINTED	004399	BLAIS & ASSOCIATES	5,197.50			
53812	BA_9575_2026		01414	5205	2,600.00			
53813	BA_9548_2026		01414	5205	1,160.00			
53814	BA_9549_2026		12400	5516	CCLGP 1,437.50			
200467	04/17/2026	PRINTED	008250	COLLINS & SCHOETTLER	80,113.33			
53853	224425		01414	5205	18,168.33			
53854	224399		01414	5205	5,993.00			
53855	224414		01414	5205	34,528.00			
53856	224398		01414	5205	21,424.00			
200468	04/17/2026	PRINTED	008300	CITY OF FARMERSVILLE	4,227.98			
53823	719897		01425	5206	932.07			
53824	719898		39425	5206	HLTHY 237.95			
53825	720024		01406	5206	55.01			

CHECK #	CHECK DATE	TYPE	VENDOR	NAME				UNCLEARED	CLEARED	BATCH	CLEAR DATE
	53826		718406		01404	5206		1,982.61			
	DOC		INVOICE NO		ORG	OBJ	PROJ	AMOUNT			
	53827		720219		01404	5206		116.31			
	53828		718405		01406	5206		283.17			
	53829		719900		01425	5206		442.83			
	53830		719899		01406	5206		178.03			
200469	04/17/2026	PRINTED	008399	CITY OF VISALIA				16,306.19			
	53904		AR109248		01425	5205		16,306.19			
200470	04/17/2026	PRINTED	010600	EVRETT, TROY				301.00			
	53808		CRITICUAL LEADERSHIP		01411	5208		301.00			
200471	04/17/2026	PRINTED	023530	KEY EVIDENCE LOCK & SAFE,				341.99			
	53811		137971		01411	5201		18.43			
	53880		62921		01411	5205		323.56			
200472	04/17/2026	PRINTED	030200	MONARCH FORD, INC.				1,764.28			
	53872		23652		04425	5204		417.07			
	53873		23850		21425	5205		1,347.21			
200473	04/17/2026	PRINTED	037200	RAILROAD MANAGEMENT CO.,				697.85			
	53879		545868		02425	5205		697.85			
200474	04/17/2026	PRINTED	040500	SJVAPCD				314.00			
	53877		S187442		01425	5202		314.00			
200475	04/17/2026	PRINTED	046100	TULARE COUNTY ASSOCIATION				4,296.50			
	53889		267840009		01405	5205		2,148.25			
	53890		267840010		01405	5205		2,148.25			
200476	04/17/2026	PRINTED	048030	TULARE COUNTY GENERAL SER				72.98			
	53858		26433		01411	5201		72.98			
200477	04/17/2026	PRINTED	048300	USABLUEBOOK, INC.				3,121.45			
	53857		INV01002767		21425	5203		3,121.45			
200478	04/17/2026	PRINTED	048350	UNITED SECURITY ALARMS, I				1,690.50			
	53881		112008-24735		39425	5205		867.00			
	53882		112008-24734		39425	5205		823.50			
200479	04/17/2026	PRINTED	051550	VERIZON WIRELESS				1,041.54			
	53832		6140243152		01411	5211		63.35			
	53832		6140243152		01420	5211		63.35			
	53832		6140243152		04425	5211		63.35			
	53833		6140019716		01411	5211		283.83			
	53833		6140019716		01420	5211		283.83			
	53833		6140019716		04425	5211		283.83			
200480	04/23/2026	PRINTED	002815	MELINDA FIERRO				50.00			

CHECK #	CHECK DATE	TYPE	VENDOR	NAME				UNCLEARED	CLEARED	BATCH	CLEAR DATE
	53907	53907			101407	4064		50.00			
200481	04/23/2026	PRINTED	002816	FARMERSVILLE AZTECS YOUTH				50.00			
	DOC	INVOICE NO			ORG	OBJ	PROJ	AMOUNT			
	53908	53908			101407	4064		50.00			
200482	04/23/2026	PRINTED	002815	MELINDA FIERRO				50.00			
	53915	53915			101407	4064		50.00			
200483	04/23/2026	PRINTED	002817	ALYSSA BARRERA				50.00			
	53909	53909			101407	4064		50.00			
200484	04/23/2026	PRINTED	002818	ALMA PUGA				50.00			
	53910	53910			101407	4064		50.00			
200485	04/23/2026	PRINTED	002819	MARCO LOPEZ				50.00			
	53911	53911			101407	4064		50.00			
200486	04/23/2026	PRINTED	002820	MELINDA FIERRO				50.00			
	53912	53912			101407	4064		50.00			
200487	04/23/2026	PRINTED	002821	ASHLEY VEGA				50.00			
	53913	53913			101407	4064		50.00			
200488	04/23/2026	PRINTED	002822	JOSE PEREZ				50.00			
	53914	53914			101407	4064		50.00			
200489	04/23/2026	PRINTED	002823	LOURDES VASQUEZ				50.00			
	53916	53916			101407	4064		50.00			
200490	04/23/2026	PRINTED	002824	JESSICA CASTRO				50.00			
	53917	53917			101407	4064		50.00			
		104 CHECKS		CASH ACCOUNT TOTAL				579,974.67	.00		

		UNCLEARED	CLEARED
104 CHECKS	FINAL TOTAL	579,974.67	.00

** END OF REPORT - Generated by Breann Allen **

CITY OF FARMERSVILLE

ADVICE REGISTER - BI WEEKLY

WARRANT: 040726 From: 03/25/2026 To: 04/07/2026

EMP #	NAME	CHK #	NET PAY
189		000018100	2,164.37
7		000018101	2,280.68
149		000018102	1,429.03
198		000018103	1,762.62
193		000018104	1,633.02
190		000018105	1,720.78
164		000018106	2,372.43
11		000018107	6,126.57
194		000018108	2,035.37
148		000018109	1,837.01
112		000018110	1,766.96
167		000018111	2,151.86
195		000018112	1,622.05
152		000018113	1,298.70
119		000018114	2,649.17
26		000018115	4,172.10
39		000018116	1,761.66
75		000018117	3,257.64
82		000018118	3,223.30
111		000018119	2,082.99
157		000018120	1,548.87
38		000018121	2,639.86
154		000018122	1,801.19
151		000018123	2,183.75
178		000018124	1,571.52
117		000018125	2,178.82
196		000018126	2,418.53
185		000018127	3,496.42
165		000018128	3,344.06
145		000018129	2,744.27
160		000018130	2,840.73
124		000018131	2,069.85
108		000018132	2,066.99
144		000018133	1,437.16
184		000018134	1,956.27
183		000018135	2,627.74
161		000018136	1,266.55
163		000018137	1,883.52
80		000018138	2,572.15
166		000018139	2,510.75
61		000018140	2,491.18
158		000018141	2,811.27
155		000018142	2,522.23
	Total Deposits: 43		100,331.99

** END OF REPORT - Generated by Breann Allen **

ADVICE REGISTER - SPECIAL

WARRANT: 040826 From: 03/16/2026 To: 03/24/2026

EMP #	NAME	CHK #	NET PAY
198		000018143	1,167.97
	Total Deposits: 1		1,167.97

** END OF REPORT - Generated by Breann Allen **

CITY OF FARMERSVILLE

ADVICE REGISTER - SPECIAL

WARRANT: 040926 From: 04/08/2026 To: 04/08/2026

EMP #	NAME	CHK #	NET PAY
183		000018144	25,293.60
	Total Deposits: 1		25,293.60

** END OF REPORT - Generated by Breann Allen **

CITY OF FARMERSVILLE

ADVICE REGISTER - BI WEEKLY

WARRANT: 042126 From: 04/08/2026 To: 04/21/2026

EMP #	NAME	CHK #	NET PAY
189		000018145	2,206.26
7		000018146	2,010.32
149		000018147	1,908.69
198		000018148	1,167.97
193		000018149	1,635.88
190		000018150	1,766.93
164		000018151	2,372.42
500		000018152	277.05
11		000018153	5,709.17
194		000018154	1,917.25
148		000018155	1,837.40
112		000018156	1,754.14
167		000018157	1,397.09
195		000018158	1,622.02
152		000018159	1,296.47
119		000018160	1,673.13
26		000018161	4,239.66
39		000018162	2,328.96
75		000018163	4,211.42
82		000018164	3,162.28
111		000018165	1,313.00
501		000018166	277.05
157		000018167	1,545.77
38		000018168	2,165.41
154		000018169	1,624.81
505		000018170	273.97
151		000018171	2,015.12
178		000018172	1,571.40
117		000018173	2,177.17
196		000018174	2,430.88
185		000018175	4,261.74
165		000018176	3,120.38
145		000018177	2,309.26
160		000018178	1,729.00
506		000018179	277.05
124		000018180	2,315.15
108		000018181	1,767.93
144		000018182	1,956.40
184		000018183	761.68
163		000018184	2,486.49
80		000018185	2,489.85
166		000018186	2,356.80
61		000018187	2,495.03
158		000018188	2,818.80
503		000018189	273.97
155		000018190	2,563.78
	Total Deposits: 46		93,872.40

** END OF REPORT - Generated by Breann Allen **

CITY OF FARMERSVILLE

ADVICE REGISTER - SPECIAL

WARRANT: 042326 From: 04/22/2026 To: 04/23/2026

EMP #	NAME	CHK #	NET PAY
196		000018191	4,138.56
	Total Deposits: 1		4,138.56

** END OF REPORT - Generated by Breann Allen **

CITY OF FARMERSVILLE

ADVICE REGISTER - SPECIAL

WARRANT: 043026 From: 04/22/2026 To: 04/28/2026

EMP #	NAME	CHK #	NET PAY
185		000018193	8,195.51
	Total Deposits: 1		8,195.51

** END OF REPORT - Generated by Breann Allen **

Employee	Last Name	First Name	Check Date	Check Number	Pay Description	Amount
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	100.00
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	100.00
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	100.00
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	75.00
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	100.00
189	ALLEN	BREANN	04/10/2026	18100	STIPEND	25.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	100.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	100.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	100.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	75.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	100.00
189	ALLEN	BREANN	04/24/2026	18145	STIPEND	25.00
11	BROCK	JAY	04/10/2026	18107	RETRO PAY	623.68
82	GIOVANI	ROCHELLE	04/10/2026	18118	STIPEND	250.00
82	GIOVANI	ROCHELLE	04/10/2026	18118	STIPEND	125.00
82	GIOVANI	ROCHELLE	04/10/2026	18118	STIPEND	125.00
82	GIOVANI	ROCHELLE	04/24/2026	18164	STIPEND	250.00
82	GIOVANI	ROCHELLE	04/24/2026	18164	STIPEND	125.00
82	GIOVANI	ROCHELLE	04/24/2026	18164	STIPEND	125.00
185	LOZA	ANTHONY	04/10/2026	18127	STIPEND	175.00
185	LOZA	ANTHONY	04/10/2026	18127	STIPEND	150.00
185	LOZA	ANTHONY	04/10/2026	18127	STIPEND	125.00
185	LOZA	ANTHONY	04/10/2026	18127	STIPEND	50.00
185	LOZA	ANTHONY	04/24/2026	18175	STIPEND	175.00
185	LOZA	ANTHONY	04/24/2026	18175	STIPEND	150.00
185	LOZA	ANTHONY	04/24/2026	18175	STIPEND	125.00
185	LOZA	ANTHONY	04/24/2026	18175	STIPEND	50.00
						3,623.68

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 26, 2026

Item #: 1
Action Items

DEPARTMENT: City Manager

FROM: Michael L. Farley, Interim City Attorney

AGENDA TITLE: Action Pertaining to the Approval of City Manager Agreement

ACTION & RECOMMENDATION

Adopt Resolution 2026-018 approving City Manager Agreement for Jay Brock as Interim City Manager from May 1, 2026, to October 1, 2026, at which time Jay Brock shall become permanent City Manager.

BACKGROUND | ANALYSIS

Jay Brock is currently the Chief of Police and Interim City Manager. The Council has indicated a desire to make Chief Brock the permanent City Manager effective October 1, 2026. The attached contract is fairly standard for City Managers. The salient portions are:

1. Compensation – Section 4: $232,960.00 per year. [Note: From May 1, 2026, to October 1, 2026, City Manager shall be designated as "Interim City Manager" as well as Chief of Police. However, unless otherwise terminate as provided for herein, the "Interim" shall be dropped from the position effective October 1, 2026.

2. Retirement – Section 5: [Standard PERS with Roth IRA for difference between Chief of Police PERS and City Manager PERS.]

3. Vacation – Section 7: Standard [See pages 2 and 3].

4. Fiscal Impact: Budgeted.

ATTACHMENTS

Resolution 2026-018
City Manager Agreement

RESOLUTION NO. 2026-018

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FARMERSVILLE
ADOPTING A RESOLUTION APPROVING CITY MANAGER AGREEMENT FOR JAY BROCK

WHEREAS, the City of Farmersville ("City") desires to employ Jay Brock as Interim City Manager from May 1, 2026, until October 1, 2026, at which time his position shall become permanent City Manager; and

WHEREAS, the City's budget for 2026-27 is still being reviewed and processed; and

WHEREAS, the City Council desires to ensure the continued, uninterrupted services of City Manager and, therefore, the City Council desires to employ Jay Brock as Interim City Manager and thereafter City Manager on the terms and conditions outlined in the City Manager Agreement submitted simultaneously herewith [Exhibit A hereto].

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Farmersville, as follows:

1. The City Manager Agreement shall be approved on the terms and conditions outlined in the City Manager Agreement attached hereto as Exhibit A; and

2. The Mayor shall be authorized to execute the City Manager Agreement.

The foregoing Resolution was adopted upon a motion of Council member _____, second by Council member _____, at a regular meeting of the Farmersville City Council on the 26th day of May, 2026, by the following roll call vote:

AYES: _____

NOES: _____

ABSENT: _____

ABSTAIN: _____

_____
Tina Hernandez, Mayor

_____
Rochelle Giovani, City Clerk

EXHIBIT A

CITY MANAGER AGREEMENT

This Agreement, made and entered into this 1st day of May, 2026, between the CITY OF FARMERSVILLE, a municipal corporation, hereinafter referred to as "City" and/or "City Council" and JAY BROCK, hereinafter referred to as "Manager," each of whom understands and agrees as follows:

WHEREAS, the governing body of the City of Farmersville, hereinafter called "Council," desires to employ the services of JAY BROCK as City Manager of the City of Farmersville; and

WHEREAS, it is the desire of the City Council to provide certain benefits and establish certain terms and conditions of employment, all as set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants herein contained, the parties agree as follows:

SECTION 1. Duties of Manager: Manager shall serve as the City Manager of the City of Farmersville and shall do and perform all services, acts, or functions necessary or advisable to carry out the duties as provided under ordinance and job description, subject to the direction and control of the Council and in accordance with State and Federal laws. Manager shall work exclusively for the City of Farmersville and shall not consult or accept employment with any other person or entity without prior written approval of City.

SECTION 2. Performance Evaluation: The Council shall review and evaluate the performance of the Manager annually on or about June 1st of each year or as mutually agreed. The annual review and evaluation shall be in accordance with specific criteria developed jointly by the Council and Manager. Such criteria may be added to or deleted from time to time. If satisfied with Manager's performance, City shall have the right, in its sole discretion, to award a salary increase or decline to award such an increase. The salary increase will take effect as of the first pay period in July 1, 2027, and each July 1 thereafter.

SECTION 3. Term of Employment:

(A) City hereby employs Manager, and Manager hereby accepts employment with City for a term of employment commencing/continuing as of July 1, 2026, and terminating June 30, 2029. As used herein, "term of employment" or "employment term" refers to the entire period of employment of Manager by City hereunder, whether for the period provided above, or whether terminated earlier as hereafter provided, or extended by mutual agreement of Manager and City.

(B) Nothing in this Agreement shall prevent, limit, or otherwise interfere with the right of the Council to terminate the services of Manager at any time, subject only to the provisions set forth in Sections 13 and 14 of this Agreement.

(C) Nothing in this Agreement shall prevent, limit or otherwise interfere with the right of the Manager to resign at any time from his position with the City, subject only to the provisions set forth in Section 15 of this Agreement.

(D) In the event written notice is not given by either party to this Agreement to the other on or before June 1, 2029, and each subsequent June 1, this Agreement shall be extended for an additional year with the same conditions contained herein.

SECTION 4. Compensation: As compensation for the services hereunder, Manager shall receive a basic salary of $232,960.00 per year, payable incrementally at the same time as other employees of the City are paid, during the employment term. Unless otherwise provided for herein, Cost of Living increases and other benefit changes shall be considered for Manager at the same time that such consideration is given to other employees. Compensation and all other benefits are to commence as of the effective date of this Agreement.

NOTE: From May 1, 2026, to October 1, 2026, Manager shall be designated as "Interim City Manager" as well as Chief of Police. However, unless otherwise terminate as provided for herein, the "Interim" shall be dropped from the position effective October 1, 2026.

Manager shall continue to receive his current Chief of Police salary and one time stipend before October 1, 2026, in the amount of $48,000.00.

SECTION 5. Retirement and Social Security; Deferred Compensation: Manager will be acting as an advisor to and mentoring the incoming Chief of Police after appointment is accomplished. Accordingly, Manager shall remain in "Safety PERS retirement" for the period of October 1, 2026, to October 1, 2027. If Manager is still employed by City after that date, the parties will negotiate a PERS rate (and incidental benefits) after October 1, 2027.

SECTION 6. Insurance: City agrees to provide the Manager and his eligible dependents with a Healthcare Program, Dental Plan, and Vision Plan in accordance with the rules and regulations governing these programs and shall pay all premiums at no cost to the Manager or his eligible dependents at the same level of benefits provided to other employees. City shall also provide Manager with a long-term disability policy in accordance with that provided to all City employees. City shall provide life insurance coverage for the Manager in the amount of $100,000. Cost of the coverage shall be covered by City and payment of benefits shall be to the beneficiary of Manager's choice.

SECTION 7. Vacation, Sick Leave, Holidays and Bereavement Leave:

A. Vacation: City agrees that the Manager shall be entitled to the accrual of vacation days at a rate set forth as follows:

Years of Completed Service	Vacation Accrual
10+	20 days (6.15 hrs./pay period*

[*Vacation accrual shall be capped at three (3) times the Manager's annual accrual. If Manager reaches his vacation cap, he will cease to accrue vacation leave time unless and until a written waiver not to exceed an aggregated maximum of eight (80) vacation hours above the cap, is provided and approved by the City Council.]

Vacation leave shall be taken at a time selected by the Manager and approved by the Council. Upon separation from City, the Manager shall be paid for all accrued vacation leave consistent with the current City policy as amended from time to time.

Sick leave and vacation carry-over and increases shall be in accordance with current City policy as amended from time to time.

B. Vacation Buy Back: Each fiscal year, after using 60 hours of Vacation leave, Manager may sell back 30 hours of Vacation leave. In order to sell back hours, Manager must have a minimum of 100 hours in their bank before Manager can cash out the 30 hours.

C. Sick Leave: Manager shall accrue 3.69 hours of sick leave prepay period. Sick leave shall accrue without limit. In the event Manager terminates his employment with City, he shall be paid out for all accrued sick leave at his current rate of pay in a manner consistent with the current City's policy as amended from time to time.

D. Holiday Leave: Manager shall receive paid time off for each of the following holidays:

New Year's Day
Martin Luther King Jr. Day
President's Day
Cesar Chavez Day
Memorial Day
Juneteenth
Independence Day
Labor Day
Veteran's Day
Thanksgiving
Day following Thanksgiving
Christmas Eve
Christmas
New Year's Eve (the second half of the workday)
Employee's Birthday
Any special holidays declared by the Mayor, Governor or President
Good Friday (last 2 hours off)

In the event a holiday falls on a Saturday, the preceding Friday will be the day that Manager will observe as the holiday. In the event a holiday falls on a Sunday, the following Monday will be the day that the employee will observe as the holiday.

In the event Manager does not utilize all of his holiday time by the end of the last pay period in the fiscal year, he shall carry the time over and shall be compensated at an hourly rate at the time of separation with City.

E. Bereavement Leave: in the event of the death of a member of Manager's immediate family (i.e., spouse, parent, brother, sister, child, stepchild, mother-in-law, father-in-law, grandchild or grandparent), Manager may use up to five (5) days off with the approval of City Council. Manager may use up to three (3) days sick leave in addition to bereavement lease, if needed, with the approval of City Council.

SECTION 8. Administrative Leave: The City's business and management affairs obligate the Manager to routinely work or represent the City beyond regular or customary City Hall business office hours or work days. The Manager shall receive no overtime pay for any such time or work. In consideration of this obligation, Manager shall receive one hundred twenty (120) hours of paid administrative leave at the beginning of each fiscal year to be paid at Manager's current rate. Up to fifty (50) hours of unused administrative leave hours will automatically be paid out on the last check in June of each fiscal year. Such leave is to be used at the discretion of the Manager.

SECTION 9: Additional Benefits: In addition to other benefits set forth herein and those set forth in the Municipal Code and the City personnel policies, Manager shall be entitled to the following: City shall supply Manager with a cellular telephone to be used for business purposes.

SECTION 10: Professional Development: City agrees to budget and pay the professional dues, subscriptions, travel and other business expenses of the Manager reasonably necessary for his continuation and full participation in national, regional, state and local associations and organizations including the League of California Cities. Notwithstanding the foregoing, City shall have the sole and exclusive discretion as to which items noted in this paragraph shall be paid for except City shall pay for one service club membership provided such service club is located in Farmersville.

SECTION 11. Bonding: City shall bear the full cost of any fidelity or other bonds required of the Manager under any law or ordinance or request of Council.

SECTION 12. Automobile: City shall provide Manager with a vehicle for use on official City business and transportation to and from Manager's residence and the civic center. It is, however, understood that some incidental personal use of the vehicle is acceptable. City shall be fully responsible for providing the purchase, operation, maintenance, repair and regular replacement of the vehicle.

SECTION 13. Termination of Manager: The City may terminate the Manager upon ten (10) days written notice. At the end of the ten (10) day period, the Manager's service to the City shall terminate. If Manager is terminated without cause ("for cause" being defined hereafter in Section 14), Manager shall receive a lump sum severance pay equal to six (6) months salary and benefits, including any accrued sick leave, vacation leave and administrative leave to which Manager may be entitled. Upon payment of the lump sum, all other obligations of both City and Manager under this Agreement shall cease. In order to be terminated for cause or without cause by City, three (3) or more Council members (regardless of the number of members participating in the vote and irrespective of whether or not any vacancies on the Council exist at the time of the vote) must vote in favor of termination. Termination of the Manager shall not occur upon a Council vote of 2-1, but any other majority of a quorum vote shall be effective.

If the Council should terminate the Manager during the ninety (90) day period succeeding any municipal election in which a member(s) of the Council is elected, then the severance provisions provided for in this section shall be doubled to twelve (12) months pay.

SECTION 14. Termination of Manager for Cause: Notwithstanding Section 3 of this Agreement, City may terminate this Agreement for cause upon ten (10) days written notice to Manager. For the purposes of this Agreement, cause is defined as follows: "The arrest or conviction of Manager for any illegal act involving personal gain to him, and/or a felony." At the end of the ten-day notice period, the Manager's services shall terminate. At the end of the ten-day period, all other obligations of both Manager and City under this Agreement shall cease. Any termination pursuant to this Section shall not prejudice any other remedy to which the City may, either at law, in equity or under this Agreement, be entitled.

SECTION 15. Termination of Agreement by Manager: This Agreement may be terminated by Manager by giving thirty (30) days written notice of termination to City. In the event of the termination of this Agreement by Manager prior to completion of the term of employment specified herein, Manager shall be entitled to the compensation earned by him prior to the date of termination as provided for in this Agreement, computed pro rata up to and including that date. For purposes of this Section, compensation shall include both salary, accrued vacation, and accrued administrative leave. Manager shall be entitled to no further compensation as of the date of termination. Manager shall be allowed to use accrued vacation and/or administrative leave, not to exceed ten (10) working days during the thirty (30) calendar day notification period.

SECTION 16. Notices: Notices pursuant to this Agreement shall be written and shall be given by deposit in the custody of the United States Postage Service, postage prepaid, addressed as follows:

(1) Mayor, City of Farmersville
909 West Visalia Road
Farmersville, California 93223

(2) Jay Brock
c/o City of Farmersville
909 West Visalia Road
Farmersville, California 93223

(3) Copy to City Attorney, currently:

Michael L. Farley
Farley Law Firm
500 N Willis St
Visalia, California 93291

Alternatively, notices required pursuant to this Agreement may be personally served in the same manner as is applicable to civil judicial practice. Notice shall be deemed given as of the date of personal service or as of the date of deposit of such written notice in the course of transmission of the United States Postal Service.

SECTION 17. Indemnification: City shall defend, save harmless and indemnify Manager against any tort, professional liability claim or demand or other legal action, whether groundless or otherwise, arising out of an alleged act or omission occurring in the performance of Manager's duties as City Manager, including court costs and reasonable attorneys' fees.

Further, City agrees to pay all reasonable litigation expenses of Manager throughout the pendency of any litigation to which Manager is a Defendant, witness, or advisor to City. Such expense payments shall continue beyond Manager's service to City as long as litigation is pending. Further, City agrees to pay Manager reasonable consulting fees and travel expenses when Manager serves as a witness, advisor, or consultant to City regarding pending litigation.

SECTION 18. Entire Agreement: This Agreement supersedes any and all other agreements, either oral or in writing, between the parties with respect to the employment of Manager as City Manager by City and contains all of the covenants and agreements between them with respect to such employment. It is the intent of the City to provide Manager with any benefits of management employees not specifically enumerated in this Agreement. Each party to this Agreement acknowledges that no representations, inducements, promises or agreements, oral or otherwise, that any promises which have been made by any party, or anyone acting on behalf of a party, which are not embodied herein, and no other agreement, statement or promise not contained in this agreement shall be valid or binding. Any modification of this agreement will be affected only if it is in writing and signed by the parties involved.

SECTION 19. Other Terms and Conditions of Employment: City, in consultation with Manager, shall fix any such other terms and conditions of employment, relating to the performance of Manager provided such terms and conditions are not inconsistent with or in conflict with the provisions of this Agreement, the City of Farmersville Municipal Code, or any other law.

SECTION 20. No Reduction of Benefits: City shall not at any time during the term of this Agreement reduce the salary, compensation, or other benefits of Manager, except to the degree of such reduction for all management employees of the City.

SECTION 21. Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the State of California and venue shall be in Tulare County, California.

SECTION 22. General Provisions: If any provision, or any portion thereof, contained in this Agreement is held unconstitutional, invalid or unenforceable, the remainder of the Agreement, or portion thereof, shall be deemed severable, shall not be affected and shall remain in full force and effect.

This Agreement, upon approval, shall be deemed effective as of May 1, 2026.

WHEREFORE, the parties have executed this Agreement as of the dates set forth below, opposite the name of each such party.

Dated: _____.

CITY OF FARMERSVILLE

By _____
Tina Hernandez, Mayor

Dated: _____.

_____
Jay Brock

Dated: _____.

ATTEST:

_____
City Clerk

APPROVED:

Dated: _____.

FARLEY LAW FIRM

By _____
Michael L. Farley
Interim City Attorney

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 26, 2026

Item #: 2
Action Items

DEPARTMENT:	Public Works
FROM:	Steve Thompson, Director of Public Works
AGENDA TITLE:	Approval of 2026 Task Order No. 1 for Design – Farmersville Pedestrian Improvements Project

ACTION & RECOMMENDATION

Staff recommends that the City Council Consider approving 2026 Task Order No. 1 - 4Creeks Job #251447 – Pedestrian Crossings at Various Locations.

BACKGROUND | ANALYSIS

The project was identified to address pedestrian safety concerns at key intersections within the City. The City successfully applied for and was awarded funding through the Highway Safety Improvement Program (HSIP) Cycle 12, a state-administered program focused on reducing traffic-related fatalities and serious injuries. This project was identified as a top priority in the City's Local Roadway Safety Plan (LRSP), which documents the City's higher-than-average rate of pedestrian-involved collisions.

The proposed improvements will occur at the intersections of N. Magnolia Avenue and E. Visalia Road, and S. Farmersville Boulevard and E. Oakland Avenue. Improvements include the installation of rectangular rapid flashing beacon (RRFB) systems, enhanced pavement markings, and ADA-compliant curb ramp upgrades to improve pedestrian visibility and accessibility.

FISCAL IMPACT

2026 Task Order No. 1 – 4Creeks Job #251447 – Pedestrian Crossings at Various Locations Design Proposal in the amount of $68,663.00.

The total budget allocated for the Preliminary Engineering (PE) phase is $55,400. Of this amount, $49,860 (90%) will be funded through State Highway Safety Improvement Program (HSIP) funds, with the remaining $5,540 (10%) provided by the City as the required local match. Since the proposed task order exceeds the programmed PE budget, staff will coordinate with Caltrans Local Assistance and TCAG to identify potential options to address the funding shortfall associated with the additional project costs.

ATTACHMENTS

1. 2026 Task Order No. 1

February 23, 2026

Mr. Steven Thompson
City of Farmersville
909 W. Visalia Road
Farmersville, CA 93223
(559) 747-0458

Subject: 2026 Task Order No. 1 – 4Creeks Job #251447 - Pedestrian Crossings at Various Locations

Dear Mr. Thompson,

We have prepared a scope and fee for the services required to complete the preliminary engineering phase for the requested pedestrian crossings at various locations in Farmersville, California. Our understanding is that the scope of work for this project will generally include engineering design services for the following improvements:

- A rectangular rapid flashing beacon (RRFB) system at the intersection of E. Visalia Road and Magnolia Avenue. Refresh pavement markings and install new where necessary.
- A RRFB system at the intersection of S. Farmersville Boulevard and Oakland Avenue, including school zone pavement markings where needed.
    - Install one new accessible curb ramp on the west side of S. Farmersville Boulevard at E. Oakland Avenue.

The following scope of work will provide a breakdown of the tasks needed to complete this project.

Encl: Scope of Work and Estimated Fees
Attachment A – Fee Schedule

Job No. 251447

SCOPE OF WORK

TASK 1: Project Management

4Creeks will act as the prime consultant and will manage the design team's progress throughout the life of the project. The City of Farmersville will act as the Contract Administrator for the project. The purpose of the project management task is to organize the efforts of the project team, including subconsultants and the City, to keep the project on schedule and within budget. 4Creeks will:

- Provide project administration.
- Schedule meetings in coordination with the City (a total of 3 meetings have been assumed).
- Implement and maintain quality control across all disciplines that are involved in the project.
- Prepare and deliver monthly invoices to the City of Farmersville.

The above-described **Task 1** services will be provided for a **Fixed Fee of $2,415.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 2: Topographic Survey

4Creeks will complete the topographic survey of the project limits for use in creating the base maps. The topographic survey shall include, but not be limited to, the following:

- Property and right of way lines based on existing survey information (City of Farmersville to provide Preliminary Title Reports for all parcels that are impacted by the project).
- Existing grade and elevations to 10 feet beyond future right of way and within the street right of way of any existing pavement, curb, gutters, sidewalks, natural grades, and other miscellaneous items.
- Monument lines, if applicable.
- Street centerlines.
- Pavement edges, crowns, quarter crowns, and hinge points.
- Flowlines.
- Curbs and gutters.
- Sidewalks.
- Drive approaches and driveways.
- Edges of pavement.
- Existing pavement delineation.
- Sign locations.
- Visible utility infrastructure including utility poles, valves, and streetlights.

- Fence locations.
- Local property control monuments to serve as the horizontal control and local City benchmark to serve as the vertical control.
- Other surface improvements.

4Creeks will then prepare the topographic survey and base maps. Right of way limits will be drafted on the topographic survey from record maps and Preliminary Title Reports provided by the City. This fee does not include ordering title reports for separate properties or record research of dedicated easements/additional right of way. The City shall also provide available as-built plans for the project limits.

The above-described **Task 2** services will be provided for a **Fixed Fee of $5,500.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 3: Utility Research and Coordination

4Creeks will assist with the utility coordination phase of the project. These services will include the following:

- Utility Research and Coordination:
    - Obtain utility plats and record drawings from utility companies.
    - Draft obtained utility information in the topographic survey and base maps.
    - Complete SCE application for one streetlight to be installed at the S. Farmersville Boulevard/E. Oakland Avenue pedestrian crossing.

The above-described **Task 3** services will be provided for a **Fixed Fee of $5,500.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 4: Environmental

4Creeks will undertake the environmental work in compliance with the California Environmental Quality Act (CEQA). Per Caltrans correspondence, National Environmental Policy Act (NEPA) documentation will not be required for this project.

As such, we are proposing to prepare a Categorical Exemption (CE) pursuant to CEQA. The CE will provide the rationale used to support the appropriateness and applicability of this type of CEQA document. Upon completion of the CE and approval by the City of Farmersville, we can also file the completed CE with the Tulare County Clerk's Office. Further, with authorization from the City of Farmersville, we can also file a Notice of Exemption with the State Clearinghouse. This task will also include submitting the Preliminary Environmental Study (PES) form.

The above-described **Task 4** services will be provided for a **Fixed Fee of $5,000.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 5: Right of Way

4Creeks will prepare right of way documents to be submitted to Caltrans for approval. It is assumed right of way acquisition is not needed and improvements can be made within the existing right of way. Right of way services, other than providing grant required documentation to Caltrans, is excluded

The above-described **Task 5** services will be provided for a **Fixed Fee of $5,000.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

Task 6: Construction Documents

Under this task, the 4Creeks team will provide the necessary services to complete the design of the Pedestrian Crossings at Various Locations Project. The design will be in accordance with the City of Farmersville Standards and Caltrans Standards. 4Creeks will submit plans, specifications, and engineer's opinion of probable construction cost estimates (PS&E) to the City of Farmersville for review at the 30%, 90%, 100%, and final design milestones. It is anticipated that the City will provide a full PS&E review from all necessary parties at each submittal stage and will compile all comments into one set of comments to provide to 4Creeks. The 4Creeks team will then review and revise the PS&E documents in accordance with the City's comments and provide the City with a copy of the design team's internal QC review at each submittal, if requested. Comments not incorporated into the submittals shall be tracked and justification provided in a comment matrix.

This task shall include, but not be limited to:

Design Plans:

4Creeks will prepare a full set of improvement plans per the City's specifications, including, but not limited to:

- Cover Sheet
- Topographic Survey/Demolition Plan
- Civil Plans: layout of surface improvements with existing topographic survey faded in the background, including:
    - Stationing, offsets, etc.
    - Property data of adjacent properties (APN, addresses)
    - ADA/PROWAG-compliant curb ramp
    - Signing, striping, and pavement marking improvements
    - Rectangular rapid flashing beacon (RRFB) system plans

- Civil detail sheets and standard detail sheets

All sheets will maintain a consistent north orientation, have consecutively numbered pages, and shall be legible at full and half size. All design features will match existing grades unless otherwise specified. Project benchmarks and existing grades will be clearly shown. The design components will address ADA/PROWAG-compliance and cost efficiency.

Specifications:
The City will provide 4Creeks with an electronic copy in MS Word format of the latest standard template specifications. 4Creeks will update the specifications with project-specific content.

Engineer's Estimate of Probable Construction Costs:
4Creeks will prepare a detailed, itemized engineer's estimate of probable construction costs, which shall include:

- Descriptions of all items of work, units, quantities, unit prices, amounts, subtotals, contingencies, and project total.
- Clearly identified non-participating work items, if any.

Work Products:
The following will be submitted to the City at the 30%, 90%, 100%, and Final design stages:

- Full-sized plans (22"x34") – electronic PDF
- Project specifications – electronic PDF file starting at the 90% submittal
- Engineer's estimate of probable construction costs – electronic PDF file

The above-described **Task 6** services will be provided for a **Fixed Fee of $38,364.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

Task 7: Bidding and Construction Administration Services

4Creeks will provide the following bidding and construction administration services :

- Attend and participate in one pre-bid meeting with the City and Contractors.
- Provide supplemental instructions and clarifications to bidders as necessary; produce addendums to modify the bid documents (plans and specifications) as required.
- Review bids received at the bid opening held by the city and provide a recommendation for award.
- Attend and participate in one preconstruction meeting.
- Respond to Requests for Information.
- Review technical submittals, if requested by the City.
- Assist with change order review, if requested by the City.

- Prepare as-built record drawings in AutoCAD based on red-lined plans provided by the City/Contractor.

We estimate that the above-described **Task 7** services can be provided for a **Fixed Fee of $6,884.00.** *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

PROPOSAL SUMMARY

TASK	DESCRIPTION	FEE	COST
1	PROJECT MANAGEMENT	FIXED FEE	$2,415.00
2	TOPOGRAPHIC SURVEY	FIXED FEE	$5,500.00
3	UTILITY RESEARCH AND COORDINATION	FIXED FEE	$5,500.00
4	ENVIRONMENTAL	FIXED FEE	$5,000.00
5	RIGHT OF WAY	FIXED FEE	$5,000.00
6	CONSTRUCTION DOCUMENTS	FIXED FEE	$38,364.00
7	BIDDING AND CONSTRUCTION ADMINISTRATION SERVICES	T&M	$6,884.00
		SUBTOTAL FEE:	**$68,663.00**

CITY OF FARMERSVILLE RESPONSIBLIITIES

- The City shall provide the following information/data upon notice to proceed:
  - Current City Standard Plans.
  - Current City specifications and technical special provisions in MS Word.
  - Record drawings of the project area.
  - Right of way documents or title reports for the project.
  - Any utility information the City may have for the project area.
- The City shall provide responses to Consultant's questions within two (2) working days throughout the project.
- The City shall attend and participate in project coordination meetings and City review meetings.
- The City shall provide a project DIR number.
- The City shall process invoices for all parties.
- The City shall utilize their on-call lists to retain other subcontractors to perform work that is outside the 4Creeks scope of services.

ASSUMPTIONS AND EXCLUSIONS

All fixed fees and time and material services are determined using our current adopted fee schedule (shown as Attachment A). Additional services in the future will be assessed, and estimates may be updated and provided in the event the agreement and fee schedule have been updated.

Excluded from this scope of work are the following services:

- City or other agency permit fees.
- Review and/or approval by any other agency, including the California Division of the State Architect (DSA).
- Right of way services, including ordering title reports or preparing legal descriptions and exhibits. It is assumed improvements can be designed within existing right of way.
- Advertising costs for bidding services.
- Construction Management services, including all inspections.
- NEPA documentation.
- Labor compliance.
- Any work not specifically listed in this scope of work.

City and Engineer mutually agree to the terms and conditions of this Task Order, and upon execution of this Task Order by both parties, this Task Order shall be approved, subject to all the terms and conditions contained herein, and in the Agreement and this Task Order shall be appended to and become part of the Agreement.

City of Farmersville	.4Creeks
X	
By: Steve Thompson Public Works Director	By: Lisa M. Wallis-Dutra, PE, TE, PTOE, RSP$_1$ Principal Engineer
Date:	Date: 02/23/2026

Effective June 1, 2025

4Creeks, Inc. Fee Schedule – Professional

Fees are based on the median hourly pay rate for employees in each classification, plus, indirect costs, overhead, and profit. These rates are effective for one year from the contract execution date.

4CREEKS
Design

Classification	Charges Per Hour	Classification	Charges Per Hour
Architectural Services		**Planning Services**	
Associate Architect	$160	Assistant Planner	$108
Architect	$185	Associate Planner	$129
Senior Architect	$221	Planner	$149
Principal Architect	$252	Senior Planner	$180
		Principal Planner	$216
Civil Engineering Services			
Assistant Engineer	$149	**Project Manager**	
Associate Engineer	$165	Associate Project Manager	$124
Engineer	$180	Associate Project Manager - Design	$149
Senior Engineer	$215	Project Manager	$149
Principal Engineer	$252	Project Manager – Design	$175
		Senior Project Manager	$196
GIS Services		**Public Outreach Coordination**	
GIS Technician	$108	Associate Outreach Coordinator	$108
GIS Analyst/Developer	$124	Outreach Coordinator	$129
GIS Manager	$149		
Drone Pilot	$180	**Software Engineering Services**	
		Assistant Software Engineer	$93
Expert Witness		Associate Software Engineer	$113
Expert Witness	$309	Software Engineer	$139
		Senior Software Engineer	$170
Land Surveying Services		**Structural Engineering Services**	
Assistant Surveyor	$124	Associate Structural Engineer	$149
Associate Surveyor	$155	Structural Engineer	$170
Land Surveyor	$175	Senior Structural Engineer	$196
Senior Surveyor	$200	Principal Structural Engineer	$221
Principal Land Surveyor	$235		
Senior Survey Manager	$165	**Technical Services**	
1-Man, Survey Crew *	$185	Project Technician I	$98
2-Man, Survey Crew *	$268	Project Technician II	$113
3-Man, Survey Crew *	$361	Project Technician III	$129
		Project Technician IV	$144
1-Man, Survey Crew – Fresno/Tulare/Tuolumne	$245		
1-Man, Survey Crew – Kern/Kings	$245	**Utility Design Services**	
		Associate Utility Designer	$129
2-Man, Survey Crew – Fresno/Tulare/Tuolumne	$400	Utility Designer	$160
2-Man, Survey Crew – Kern/Kings	$400	Senior Utility Designer	$201
3-Man, Survey Crew – Fresno/Tulare/Tuolumne	$585	**Water Consulting Services**	
3-Man, Survey Crew – Kern/Kings	$585	Associate Water Consultant	$118
		Water Consultant	$144
		Senior Water Consultant	$175

Direct Charges

At cost plus fifteen percent (15%):

- *Transportation and per-diem expenses (auto mileage @ current IRS rate, off-road charges $50.00/day)*
- *Printing and reproduction: $0.03 per b/w copy, $0.12 per color copy, $0.80 per sq. ft. large printing*
- *Equipment rentals, subcontractors, laboratory analyses*

*Prevailing wage rates are subject to change based on the DIR updates.

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 26, 2026

Item #: 2
Action Items

DEPARTMENT:	Public Works
FROM:	Steve Thompson, Director of Public Works
AGENDA TITLE:	Approval of 2026 Task Order No. 1 for Design – Farmersville Pedestrian Improvements Project

ACTION & RECOMMENDATION

Staff recommends that the City Council Consider approving 2026 Task Order No. 1 - 4Creeks Job #251447 – Pedestrian Crossings at Various Locations.

BACKGROUND | ANALYSIS

The project was identified to address pedestrian safety concerns at key intersections within the City. The City successfully applied for and was awarded funding through the Highway Safety Improvement Program (HSIP) Cycle 12, a state-administered program focused on reducing traffic-related fatalities and serious injuries. This project was identified as a top priority in the City's Local Roadway Safety Plan (LRSP), which documents the City's higher-than-average rate of pedestrian-involved collisions.

The proposed improvements will occur at the intersections of N. Magnolia Avenue and E. Visalia Road, and S. Farmersville Boulevard and E. Oakland Avenue. Improvements include the installation of rectangular rapid flashing beacon (RRFB) systems, enhanced pavement markings, and ADA-compliant curb ramp upgrades to improve pedestrian visibility and accessibility.

FISCAL IMPACT

2026 Task Order No. 1 – 4Creeks Job #251447 – Pedestrian Crossings at Various Locations Design Proposal in the amount of $68,663.00.

The total budget allocated for the Preliminary Engineering (PE) phase is $55,400. Of this amount, $49,860 (90%) will be funded through State Highway Safety Improvement Program (HSIP) funds, with the remaining $5,540 (10%) provided by the City as the required local match. Since the proposed task order exceeds the programmed PE budget, staff will coordinate with Caltrans Local Assistance and TCAG to identify potential options to address the funding shortfall associated with the additional project costs.

ATTACHMENTS

1. 2026 Task Order No. 1

February 23, 2026

Mr. Steven Thompson
City of Farmersville
909 W. Visalia Road
Farmersville, CA 93223
(559) 747-0458

Subject: 2026 Task Order No. 1 – 4Creeks Job #251447 - Pedestrian Crossings at Various Locations

Dear Mr. Thompson,

We have prepared a scope and fee for the services required to complete the preliminary engineering phase for the requested pedestrian crossings at various locations in Farmersville, California. Our understanding is that the scope of work for this project will generally include engineering design services for the following improvements:

- A rectangular rapid flashing beacon (RRFB) system at the intersection of E. Visalia Road and Magnolia Avenue. Refresh pavement markings and install new where necessary.
- A RRFB system at the intersection of S. Farmersville Boulevard and Oakland Avenue, including school zone pavement markings where needed.
    - Install one new accessible curb ramp on the west side of S. Farmersville Boulevard at E. Oakland Avenue.

The following scope of work will provide a breakdown of the tasks needed to complete this project.

Encl: Scope of Work and Estimated Fees
Attachment A – Fee Schedule

Job No. 251447

SCOPE OF WORK

TASK 1: Project Management

4Creeks will act as the prime consultant and will manage the design team's progress throughout the life of the project. The City of Farmersville will act as the Contract Administrator for the project. The purpose of the project management task is to organize the efforts of the project team, including subconsultants and the City, to keep the project on schedule and within budget. 4Creeks will:

- Provide project administration.
- Schedule meetings in coordination with the City (a total of 3 meetings have been assumed).
- Implement and maintain quality control across all disciplines that are involved in the project.
- Prepare and deliver monthly invoices to the City of Farmersville.

The above-described **Task 1** services will be provided for a **Fixed Fee of $2,415.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 2: Topographic Survey

4Creeks will complete the topographic survey of the project limits for use in creating the base maps. The topographic survey shall include, but not be limited to, the following:

- Property and right of way lines based on existing survey information (City of Farmersville to provide Preliminary Title Reports for all parcels that are impacted by the project).
- Existing grade and elevations to 10 feet beyond future right of way and within the street right of way of any existing pavement, curb, gutters, sidewalks, natural grades, and other miscellaneous items.
- Monument lines, if applicable.
- Street centerlines.
- Pavement edges, crowns, quarter crowns, and hinge points.
- Flowlines.
- Curbs and gutters.
- Sidewalks.
- Drive approaches and driveways.
- Edges of pavement.
- Existing pavement delineation.
- Sign locations.
- Visible utility infrastructure including utility poles, valves, and streetlights.

- Fence locations.
- Local property control monuments to serve as the horizontal control and local City benchmark to serve as the vertical control.
- Other surface improvements.

4Creeks will then prepare the topographic survey and base maps. Right of way limits will be drafted on the topographic survey from record maps and Preliminary Title Reports provided by the City. This fee does not include ordering title reports for separate properties or record research of dedicated easements/additional right of way. The City shall also provide available as-built plans for the project limits.

The above-described **Task 2** services will be provided for a **Fixed Fee of $5,500.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 3: Utility Research and Coordination

4Creeks will assist with the utility coordination phase of the project. These services will include the following:

- Utility Research and Coordination:
    - Obtain utility plats and record drawings from utility companies.
    - Draft obtained utility information in the topographic survey and base maps.
    - Complete SCE application for one streetlight to be installed at the S. Farmersville Boulevard/E. Oakland Avenue pedestrian crossing.

The above-described **Task 3** services will be provided for a **Fixed Fee of $5,500.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 4: Environmental

4Creeks will undertake the environmental work in compliance with the California Environmental Quality Act (CEQA). Per Caltrans correspondence, National Environmental Policy Act (NEPA) documentation will not be required for this project.

As such, we are proposing to prepare a Categorical Exemption (CE) pursuant to CEQA. The CE will provide the rationale used to support the appropriateness and applicability of this type of CEQA document. Upon completion of the CE and approval by the City of Farmersville, we can also file the completed CE with the Tulare County Clerk's Office. Further, with authorization from the City of Farmersville, we can also file a Notice of Exemption with the State Clearinghouse. This task will also include submitting the Preliminary Environmental Study (PES) form.

The above-described **Task 4** services will be provided for a **Fixed Fee of $5,000.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

TASK 5: Right of Way

4Creeks will prepare right of way documents to be submitted to Caltrans for approval. It is assumed right of way acquisition is not needed and improvements can be made within the existing right of way. Right of way services, other than providing grant required documentation to Caltrans, is excluded

The above-described **Task 5** services will be provided for a **Fixed Fee of $5,000.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

Task 6: Construction Documents

Under this task, the 4Creeks team will provide the necessary services to complete the design of the Pedestrian Crossings at Various Locations Project. The design will be in accordance with the City of Farmersville Standards and Caltrans Standards. 4Creeks will submit plans, specifications, and engineer's opinion of probable construction cost estimates (PS&E) to the City of Farmersville for review at the 30%, 90%, 100%, and final design milestones. It is anticipated that the City will provide a full PS&E review from all necessary parties at each submittal stage and will compile all comments into one set of comments to provide to 4Creeks. The 4Creeks team will then review and revise the PS&E documents in accordance with the City's comments and provide the City with a copy of the design team's internal QC review at each submittal, if requested. Comments not incorporated into the submittals shall be tracked and justification provided in a comment matrix.

This task shall include, but not be limited to:

Design Plans:

4Creeks will prepare a full set of improvement plans per the City's specifications, including, but not limited to:

- Cover Sheet
- Topographic Survey/Demolition Plan
- Civil Plans: layout of surface improvements with existing topographic survey faded in the background, including:
    - Stationing, offsets, etc.
    - Property data of adjacent properties (APN, addresses)
    - ADA/PROWAG-compliant curb ramp
    - Signing, striping, and pavement marking improvements
    - Rectangular rapid flashing beacon (RRFB) system plans

- Civil detail sheets and standard detail sheets

All sheets will maintain a consistent north orientation, have consecutively numbered pages, and shall be legible at full and half size. All design features will match existing grades unless otherwise specified. Project benchmarks and existing grades will be clearly shown. The design components will address ADA/PROWAG-compliance and cost efficiency.

Specifications:
The City will provide 4Creeks with an electronic copy in MS Word format of the latest standard template specifications. 4Creeks will update the specifications with project-specific content.

Engineer's Estimate of Probable Construction Costs:
4Creeks will prepare a detailed, itemized engineer's estimate of probable construction costs, which shall include:

- Descriptions of all items of work, units, quantities, unit prices, amounts, subtotals, contingencies, and project total.
- Clearly identified non-participating work items, if any.

Work Products:
The following will be submitted to the City at the 30%, 90%, 100%, and Final design stages:

- Full-sized plans (22"x34") – electronic PDF
- Project specifications – electronic PDF file starting at the 90% submittal
- Engineer's estimate of probable construction costs – electronic PDF file

The above-described **Task 6** services will be provided for a **Fixed Fee of $38,364.00** based on our current fee schedule. *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

Task 7: Bidding and Construction Administration Services

4Creeks will provide the following bidding and construction administration services :

- Attend and participate in one pre-bid meeting with the City and Contractors.
- Provide supplemental instructions and clarifications to bidders as necessary; produce addendums to modify the bid documents (plans and specifications) as required.
- Review bids received at the bid opening held by the city and provide a recommendation for award.
- Attend and participate in one preconstruction meeting.
- Respond to Requests for Information.
- Review technical submittals, if requested by the City.
- Assist with change order review, if requested by the City.

- Prepare as-built record drawings in AutoCAD based on red-lined plans provided by the City/Contractor.

We estimate that the above-described **Task 7** services can be provided for a **Fixed Fee of $6,884.00.** *Any additional items requested not specifically mentioned above will be billed as "extra" on a Time and Materials basis.*

PROPOSAL SUMMARY

TASK	DESCRIPTION	FEE	COST
1	PROJECT MANAGEMENT	FIXED FEE	$2,415.00
2	TOPOGRAPHIC SURVEY	FIXED FEE	$5,500.00
3	UTILITY RESEARCH AND COORDINATION	FIXED FEE	$5,500.00
4	ENVIRONMENTAL	FIXED FEE	$5,000.00
5	RIGHT OF WAY	FIXED FEE	$5,000.00
6	CONSTRUCTION DOCUMENTS	FIXED FEE	$38,364.00
7	BIDDING AND CONSTRUCTION ADMINISTRATION SERVICES	T&M	$6,884.00
		SUBTOTAL FEE:	**$68,663.00**

CITY OF FARMERSVILLE RESPONSIBLIITIES

- The City shall provide the following information/data upon notice to proceed:
  - Current City Standard Plans.
  - Current City specifications and technical special provisions in MS Word.
  - Record drawings of the project area.
  - Right of way documents or title reports for the project.
  - Any utility information the City may have for the project area.
- The City shall provide responses to Consultant's questions within two (2) working days throughout the project.
- The City shall attend and participate in project coordination meetings and City review meetings.
- The City shall provide a project DIR number.
- The City shall process invoices for all parties.
- The City shall utilize their on-call lists to retain other subcontractors to perform work that is outside the 4Creeks scope of services.

ASSUMPTIONS AND EXCLUSIONS

All fixed fees and time and material services are determined using our current adopted fee schedule (shown as Attachment A). Additional services in the future will be assessed, and estimates may be updated and provided in the event the agreement and fee schedule have been updated.

Excluded from this scope of work are the following services:

- City or other agency permit fees.
- Review and/or approval by any other agency, including the California Division of the State Architect (DSA).
- Right of way services, including ordering title reports or preparing legal descriptions and exhibits. It is assumed improvements can be designed within existing right of way.
- Advertising costs for bidding services.
- Construction Management services, including all inspections.
- NEPA documentation.
- Labor compliance.
- Any work not specifically listed in this scope of work.

City and Engineer mutually agree to the terms and conditions of this Task Order, and upon execution of this Task Order by both parties, this Task Order shall be approved, subject to all the terms and conditions contained herein, and in the Agreement and this Task Order shall be appended to and become part of the Agreement.

City of Farmersville	.4Creeks
X	
By: Steve Thompson Public Works Director	By: Lisa M. Wallis-Dutra, PE, TE, PTOE, RSP Principal Engineer
Date:	Date: 02/23/2026

Effective June 1, 2025

4Creeks, Inc. Fee Schedule – Professional

4CREEKS Design

Fees are based on the median hourly pay rate for employees in each classification, plus, indirect costs, overhead, and profit. These rates are effective for one year from the contract execution date.

Classification	Charges Per Hour
Architectural Services	
Associate Architect	$160
Architect	$185
Senior Architect	$221
Principal Architect	$252
Civil Engineering Services	
Assistant Engineer	$149
Associate Engineer	$165
Engineer	$180
Senior Engineer	$215
Principal Engineer	$252
GIS Services	
GIS Technician	$108
GIS Analyst/Developer	$124
GIS Manager	$149
Drone Pilot	$180
Expert Witness	
Expert Witness	$309
Land Surveying Services	
Assistant Surveyor	$124
Associate Surveyor	$155
Land Surveyor	$175
Senior Surveyor	$200
Principal Land Surveyor	$235
Senior Survey Manager	$165
1-Man, Survey Crew *	$185
2-Man, Survey Crew *	$268
3-Man, Survey Crew *	$361
1-Man, Survey Crew – Fresno/Tulare/Tuolumne	$245
1-Man, Survey Crew – Kern/Kings	$245
2-Man, Survey Crew – Fresno/Tulare/Tuolumne	$400
2-Man, Survey Crew – Kern/Kings	$400
3-Man, Survey Crew – Fresno/Tulare/Tuolumne	$585
3-Man, Survey Crew – Kern/Kings	$585

Classification	Charges Per Hour
Planning Services	
Assistant Planner	$108
Associate Planner	$129
Planner	$149
Senior Planner	$180
Principal Planner	$216
Project Manager	
Associate Project Manager	$124
Associate Project Manager - Design	$149
Project Manager	$149
Project Manager - Design	$175
Senior Project Manager	$196
Public Outreach Coordination	
Associate Outreach Coordinator	$108
Outreach Coordinator	$129
Software Engineering Services	
Assistant Software Engineer	$93
Associate Software Engineer	$113
Software Engineer	$139
Senior Software Engineer	$170
Structural Engineering Services	
Associate Structural Engineer	$149
Structural Engineer	$170
Senior Structural Engineer	$196
Principal Structural Engineer	$221
Technical Services	
Project Technician I	$98
Project Technician II	$113
Project Technician III	$129
Project Technician IV	$144
Utility Design Services	
Associate Utility Designer	$129
Utility Designer	$160
Senior Utility Designer	$201
Water Consulting Services	
Associate Water Consultant	$118
Water Consultant	$144
Senior Water Consultant	$175

Direct Charges

At cost plus fifteen percent (15%):

- *Transportation and per-diem expenses (auto mileage @ current IRS rate, off-road charges $50.00/day)*
- *Printing and reproduction: $0.03 per b/w copy, $0.12 per color copy, $0.80 per sq. ft. large printing*
- *Equipment rentals, subcontractors, laboratory analyses*

*Prevailing wage rates are subject to change based on the DIR updates.

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 26, 2026

Item #: 1
Public Hearing

DEPARTMENT: City Manager

FROM: Jay Brock, Interim City Manager

AGENDA TITLE: Resolution 2026-016 Calling for the Submission to the Voters a Measure Relating to the Enactment of a Ten Percent (10%) Transient Occupancy Tax (TOT).

ACTION & RECOMMENDATION

Staff recommends that the City Council adopt the Resolution calling for the submission to the voters a measure relating to the enactment of a ten percent (10%) Transient Occupancy Tax ("TOT") on hotel occupancies within the City of Farmersville at the General Municipal Election to be held on November 3, 2026.

BACKGROUND | ANALYSIS

The City of Farmersville currently does not impose a Transient Occupancy Tax on hotel occupancies within the City. A Transient Occupancy Tax is commonly charged to individuals staying in hotels, motels, inns, or similar lodging facilities for short-term stays. The tax is collected by hotel operators and remitted to the local agency.

The City Council has expressed interest in placing a measure before the voters to consider the adoption of a ten percent (10%) TOT. If approved by the voters, the tax would apply to hotel guests staying within the City limits and would provide an additional source of general fund revenue to support City services and operations.

DISCUSSION

The proposed resolution calls for the placement of a ballot measure on November 3, 2026, General Municipal Election ballot asking voters whether the City should adopt a ten percent (10%) Transient Occupancy Tax on hotel occupancies within the City of Farmersville.

The proposed measure would generate general purpose revenue that may be used for services and programs such as:

- Public safety services
- Street and infrastructure improvements
- Parks and recreation programs
- Economic development activities
- Capital improvement projects
- Other general governmental services

The measure is estimated to generate approximately $250,000 annually per hotel and would remain in effect until repealed by the voters.

Adoption of the resolution authorizes the City Clerk to coordinate with the Tulare County Registrar of Voters to conduct the election and complete all required election-related procedures and notices in accordance with California Elections Code requirements.

As a general tax, the measure requires approval by a majority (50% plus one) of the voters voting on the measure.

FISCAL IMPACT

There will be costs associated with placing the measure on the ballot and conducting the election. The City will reimburse Tulare County for election-related costs associated with the measure.

If approved by the voters, the Transient Occupancy Tax is estimated to generate approximately $185,000 annually per hotel in additional general fund revenue.

ATTACHMENTS

None

Resolution 2026-016

MEASURE ___

Occupancy Tax

City of Farmersville

Impartial Analysis from the City Attorney

The City currently does not collect a transient occupancy tax ("TOT") from transients, who are defined as those individuals occupying hotel rooms within the City for fewer than thirty (30) days. The transient pays the tax to the hotel and the hotel pays the tax to the City. The City deposits the revenue into its General Fund, which supports a wide range of City services, including police and fire protection, youth recreation, senior activities, programs and economic development. Although the City does not currently have any hotels, the City anticipates that a 10% TOT will generate $250,000 annually once a moderate sized facility is operational.

The TOT will be deposited into the General Fund and as such will be a general tax. A complete description of the TOT may be found on the City's website at http://www.cityoffarmersville-ca.gov/148/City-Clerk."

The measure places before the voters the enactment of a 10% TOT that will become effective if a majority of voters approve it. The above statement is an impartial analysis of Measure ___. If you desire a copy of the measure, please call the City Clerk of the City of Farmersville at 559-747-0458 and a copy will be mailed to you at no cost.

Arguments for Measure __

Measure ___ enables voters to establish a 10% tax rate on hotel/motel occupancy, called the Transient Occupancy Tax (TOT). It is NOT a new tax.

A 10% tax rate is very competitive with other communities and could become one of the most important funding sources for vital City services.

Measure ___ is good government. The City Council and community leaders urge you to vote "YES" on Measure __.

s/Tina Hernandez, Mayor

s/Araceli Ochoa, Mayor Pro Tem

s/Paul Boyr, City Council Member

s/Gregorio Gomez, City Council Member

s/Danny Valdovinos, City Council Member

(No arguments against Measure ___ were submitted)

Full Text of Measure ___

ORDINANCE NO. __538_____

Chapter 3.44

TRANSIENT OCCUPANCY TAX

Sections:

3.44.010 Definitions.
3.44.020 Tax imposed.
3.44.030 Exemptions.
3.44.040 Collection; Operator's duties.
3.44.050 Transient occupancy registration certification.
3.44.060 Third party rental transactions.
3.44.070 Reporting and remitting.
3.44.080 Penalties and interest.
3.44.090 Failure to collect and report tax – Determination of tax by Chief Financial Officer.
3.44.100 Appeal.
3.44.110 Operators to retain records for three years.
3.44.120 Refunds.
3.44.130 Actions to collect.
3.44.140 Deficiency determinations.
3.44.150 Amendment or repeal – Adjustment of Taxing Rate or Methodology.

3.44.010 Definitions.

Except where the context otherwise requires, the definitions given in this section govern the construction of this article:

A. "Chief Financial Officer" means the City's Chief Financial Officer, or designee.

B. "Hotel" means any structure or any portion of any structure, which is occupied or intended or designed for occupancy by transients for dwelling, lodging, or sleeping purposes, and includes any hotel, inn, tourist home or house, motel, studio hotel, bachelor hotel, lodging house, rooming house, dormitory, public or private club, mobile home or house trailer at a fixed location or other similar structure or portion thereof, even if such structure is also used for other purposes, including residential purposes.

C. "Occupancy" means the use or possession of, or the right to use or possession of any room or rooms or portion thereof, in any hotel for dwelling, lodging, or sleeping purposes; whether or not the person entitled to the use or possession actually uses or possesses such room or rooms or portion thereof. The use or possession or right to use or possess any room or any suite of connecting rooms as office space, banquet or private dining rooms, or as exhibition, sample or display space shall not be considered "occupancy" unless the person uses or possesses, or has the right to use or possess all or any portion of such room or suite of rooms for dwelling, lodging or sleeping purposes.

D. "Online Short-Term Rental Company" means any person, whether operating for profit or not for profit, which facilitates the connection between transient and operator to purchase occupancy in any hotel via the Internet, or by similar electronic means.

E. "Online Travel Company" means any person whether operating for profit or not for profit, which enables transients to purchase occupancy in a hotel via the Internet, or by other similar electronic means.

F. "Operator" means the person who is the proprietor of the hotel, whether in the capacity of owner, lessee, sublessee, mortgagee in possession, licensee, or any other capacity. Where the Operator functions through a managing agent or any type of character other than an employee, the managing agent shall also be deemed an operator for the purposes of this chapter and shall have the same duties and liabilities as the principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall, however, be considered to be compliance by both.

G. "Person" means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination action as a unit.

H. "Rent" means The total consideration charged to the transient, including but not limited to, room rates, service charges, parking fees, purchase price, advanced registration, block or group reservation charges, assessments, retail markup, commission, processing fees, cancellation charges, nutrition fees, or online booking or broker fees, whether charged by an operator or a rental agent, whether or not received, for occupancy in a hotel valued in money, whether to be received in money, goods, labor or otherwise, including all receipts, cash, credits and property and services of any kind or nature, without any deduction therefrom whatsoever. Nothing in this definition shall be construed to mean that rent is charged directly or indirectly for occupancy in a hotel when a room is provided to the transient as a compliment from the operator and where no consideration is charged to or received from any other person. Further, bona fide charges for food and beverages which are subject to tax under the California Sales and Use Tax Law (Revenue and Taxation Code Sections 6001 *et. seq.*) shall not be deemed rent subject to the tax imposed by this chapter.

I. "Rental agent" means any person other than an operator who collects rent from a transient for the transient's occupancy of a hotel, including but not limited to an online travel company or an online short-term rental company.

J. "Transient" means any person who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license or other agreement for a period of thirty (30) consecutive days or less, counting portions of calendar days as full days. Any such person occupying such space in a hotel shall be deemed a transient until the period of thirty (30) days has expired unless there is an agreement in writing between the operator and the occupant providing for a longer period of occupancy. In determining whether a person is a transient, uninterrupted periods of time extending both prior and subsequent to the effective date of this chapter may be considered.

3.44.020 Tax imposed.

For the privilege of occupancy in any hotel, each transient is subject to and shall pay a tax in the amount of ten percent of the rent paid by the transient. This tax constitutes a debt owed by the transient to the City, which is extinguished only by payment to the operator, the City, or to a rental agent pursuant to Section 3.44.060. The transient shall pay the tax to the operator or rental agent at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax shall be due upon the transient's ceasing

of occupancy. If for any reason the tax due is not paid to the operator or rental agent, the City's Chief Financial Officer may require that such tax shall be paid directly to the City's Chief Financial Officer.

3.44.030 Exemptions.

A. No tax shall be imposed upon:

1. Any federal or State of California officer or employee when occupying a room while on official government business.
2. Any officer or employee of a foreign government who is exempt by reason of express provision of federal law or international treaty.

B. No exemption shall be granted except upon a claim made at the time rent is collected, and under penalty of perjury, upon a form prescribed by the City's Chief Financial Officer. Any federal or State of California officer of employee when on official governmental business claiming such exemption shall provide to the operator conclusive evidence that the occupancy is official business:

1. Travel orders from the government employer; or a government warrant issued to pay for the occupancy; or a government credit card issued to pay for the occupancy; and
2. Proof of governmental employment as an employee or officer as described in paragraph (1) of this subsection (B) and proof, consistent with these provisions, that the occupancy is for official business.

C. It shall be the duty of an operator to keep and maintain for a period of three (3) years written documentation in support of each exemption granted under this section.

3.44.040 Collection; Operator's duties.

A. Each operator shall collect the tax imposed by this chapter to the same extent and at the same time as the rent is collected from every transient.

B. If the rent is prepaid by obtaining blocks of credit or similar calls upon occupancy to be subsequently reserved, the operator shall collect the tax at the same time as specific periods for occupancy are committed to the transient by the operator, the operator shall hold such tax until it is determined to what extent, if any, the credits or similar calls upon occupancy are issued, or otherwise forfeited, and the operator shall refund the tax to the transient applicable to periods when credits or similar calls upon occupancy are not used but are restored to the transient, or the tax shall be deemed irrevocably collected for the

remittance to the City's Chief Financial Officer at the time when the credits or similar calls upon occupancy are so used, or otherwise forfeited, by the transient.

C. The amount of tax shall be separately stated from the amount of the rent charged, and each transient shall receive for payment from the operator. No operator of a hotel shall advertise or state in any manner, whether directly or indirectly that the tax or any part thereof will be assumed or absorbed by the operator, or that it will not be added to the rent, or that, if added, any part will be refunded except in the manner hereinafter provided.

3.44.50 Transient occupancy registration certification.

Within thirty (30) days after the effective date of this chapter, or within thirty (30) days after commencing business, whichever is later, each operator of any hotel renting occupancy to transients shall register said hotel with the City's Chief Financial Officer and obtain a transient occupancy registration certificate to be at all times posted in a conspicuous place on the premises. Said certificate shall, among other things, state the following:

1. The name of the operator;
2. The address of the hotel;
3. The date upon which the certificate was issued;
4. "This Transient Occupancy Registration Certificate signifies that the person named on the face hereof has fulfilled the requirements of the City of Farmersville Transient Occupancy Tax ordinance by registering with the Chief Financial Officer for the purpose of collecting from transients the transient occupancy tax and remitting said tax to the Chief Financial Officer. This certificate does not authorize any person to conduct any unlawful business or to conduct any lawful business in an unlawful manner, nor to operate a hotel without strictly complying with all local applicable laws, including but not limited to those requiring a permit from any board, commission, department or office of this City. This certificate does not constitute a permit and is not transferrable to a different operator."

3.44.060 Third party rental transactions.

A. Any transient who pays rent to a rental agent instead of to an operator shall, at the time the rent is paid, pay the tax to the rental agent in the manner required by Section 3.44.020. If for any reason the tax is not paid to the rental agent, it shall be paid to the operator before the transient has ceased occupancy in the hotel or paid directly to the City's Chief Financial Officer pursuant to Section 3.44.020. Any transient seeking a refund under Section 3.44.120 of taxes paid to a rental agent must establish that the transient has been unable to obtain a refund from the rental agent who collected the tax.

B. Any rental agent who collects rent shall comply with all obligations of the operator set forth in Sections 3.44.040 and 3.44.110 of this chapter. The rental agent shall remit all collected taxes to the operator before the deadline for the operator to remit the taxes to the City's Chief Financial Officer under Section 3.44.070, and the rental agent shall provide the operator with copies of all records required to be maintained by the operator pursuant to Section 3.44.110 of this chapter, including records necessary for the operator to comply with its obligations under this chapter.

C. If the City's Chief Financial Officer determines that a rental agent has failed to collect, remit, or report any tax, the City's Chief Financial Officer may take any action against the rental agent that he or she may take against an operator under Sections 3.44.080 and 3.44.090 of this chapter subject to the requirements of those sections. If the City's Chief Financial Officer assesses unremitted taxes and penalties against the rental agent, the rental agent shall be subject to the provisions of Sections 3.44.090, 3.44.100, 3.44.120 and 3.44.130 of this chapter as if it were an operator. Nothing in this section shall prohibit the City's Chief Financial Officer from assessing the full amount of any unremitted taxes and penalties solely against the operator in lieu of assessing some or all of those taxes and penalties against the rental agent.

3.44.070 Reporting and remitting.

Each operator on or before the last day of the month following the close of each calendar quarter, or at the close of any shorter reporting period which may be established by the City's Chief Financial Officer, shall make a return to the City's Chief Financial Officer, on forms provided by him or her, of the total rents charged and received in the amount of tax collected for transient occupancies. If no tax was due or collected during the previous reporting period, the operator shall file a return so stating under penalty of perjury. At the time the return is filed, the full amount of the tax collected shall be remitted to the City's Chief Financial Officer. The City's Chief Financial Officer may establish shorter reporting periods for any certificate holder if he or she deems it necessary in order to ensure collection of the tax, and he or she may require further information in the return. Returns and payments are due immediately upon cessation of business for any reason. All taxes collected by operators pursuant to this chapter shall be held in trust for the account of the City until payment thereof is made to the City's Chief Financial Officer.

3.44.080 Penalties and interest.

A. *Original delinquency.* Any operator who fails to remit any tax imposed by this chapter within the time required shall pay a penalty of ten percent (10%) of the amount of the tax, in addition to the amount of the tax.

B. *Continued delinquency.* Any operator who fails to remit any delinquent remittance on or before a period of thirty (30) days following the date on which the remittance first became delinquent shall pay a second delinquency penalty of ten percent (10%) of the amount of the tax in addition to the amount of the tax and the ten percent penalty first imposed.

C. *Fraud.* If the City's Chief Financial Officer determines that the nonpayment of any remittance due under this chapter is due to fraud, a penalty of twenty-five percent (25%) of the amount of the tax shall be added thereto in addition to the penalties stated in subsections (A) and (B) of this section.

D. *Interest.* In addition to the penalties imposed, any operator who fails to remit any tax imposed by this ordinance shall pay interest at the rate of one-half of one percent (0.5%) per month or fraction thereof on the amount of the tax, exclusive of penalties, from the date on which the remittance first became delinquent until paid.

E. *Penalties merged with tax.* Every penalty imposed and such interest as accrues under the provisions of this section shall become part of the tax herein required to be paid.

3.44.090 Failure to collect and report tax – Determination of tax by City's Chief Financial Officer.

A. If the operator shall fail or refuse to collect tax and to make, within the time provided in this chapter, any report and remittance of said tax or any portion thereof required by this chapter, the City's Chief Financial Officer shall proceed in such manner as may be deemed best to obtain facts and information on which to base an estimate of the tax due. As soon as the City's Chief Financial Officer shall procure such facts and information upon which to base the assessment of any tax imposed by this chapter and payable by any operator who has failed were refused to collect the same and to make such reports and remittance, the City's Chief Financial Officer shall proceed to determine and assess against such operator the tax, interest and penalties provided for by this chapter.

B. In case such determination is made, the City's Chief Financial Officer shall give a notice of the amount so assessed by serving it personally or by depositing it in the United States Mail, postage prepaid, addressed to the operator so assessed at his or her last known place of address. Such operator may within ten (10) days after this serving or mailing of such notice, make application in writing to the City's Chief Financial Officer for a hearing on the amount assessed. If application by the operator for a hearing is not made within the time prescribed, the tax, interest and penalties, if any, determined by the City's Chief Financial Officer shall become final and conclusive and immediately due and payable. If

such application is made, the City's Chief Financial Officer shall give not less than five (5) days written notice in the manner prescribed herein to the operator to show cause at a time and placed fixed instead notice why set amounts specified therein should not be fixed for such tax, interest and penalties.

C. At such hearing, the operator may appear and offer evidence why such specified tax, interest and penalties should not be so fixed. After such hearing, the City's Chief Financial Officer shall determine the proper tax to be remitted and shall thereafter give written notice and the amount of such tax, interest and penalties. The amount determined to be due shall be payable after fifteen (15) days unless an appeal is taken as provided in Section 3.44.100.

3.44.100 Appeal.

Any operator aggrieved by a decision of the City's Chief Financial Officer with respect to the amount of such tax, interest and penalties, if any, may appeal to the City Council by filing a notice of appeal with the City Clerk within fifteen (15) days of their serving or mailing of the determination of the tax due. The City Council shall fix a time and place for hearing such appeal, and the City Clerk shall give notice in writing to such operator at his or her last known address. The findings of the City Council shall be final and conclusive and shall be served upon the appellant in the manner prescribed in this section for service of notice of hearing. Any amount found to be due shall be immediately due and payable upon the service of notice.

3.44.110 Operators to retain records for three (3) years.

It shall be the duty of every operator liable for the collection and payment to the City of any tax imposed by this chapter to keep and preserve, for a period of three (3) years, all records as may be necessary to determine the amount of such tax as the operator may have been liable for the collection of and payment to the City, which records the City's Chief Financial Officer shall have the right to inspect at all reasonable times for the purposes of determining the accuracy thereof.

3.44.120 Refunds.

A. Whenever the amount of any tax, interest or penalty has been overpaid or paid more than once or has been erroneously or illegally collected or received by the City under this chapter, it may be refunded as provided in subsections (B) and (C) of this section; provided, a claim in writing therefore, stating under penalty of perjury the specific grounds upon which the claim is founded is filed with the collector within three (3) years

of the date of payment. The claim shall be on forms furnished by the City's Chief Financial Officer.

B. An operator may claim a refund or take as credit against taxes collected and remitted the amount overpaid, paid more than once or erroneously or illegally collected or received when it is established in a manner prescribed by the City's Chief Financial Officer that the person from whom the tax has been collected was not a transient; provided, however, that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded to the transient or credited to rent subsequently payable by the transient to the operator.

C. A transient may obtain a refund of taxes overpaid or paid more than once or erroneously or illegally collected or received by the City by filing a claim in the manner provided in subsection (A) of this section, but only when the tax was paid by the transient directly to the City's Chief Financial Officer or when the transient having paid the tax to the operator, establishes to the satisfaction of the City's Chief Financial Officer that the transient has been unable to obtain a refund from the operator who collected the tax.

D. No refund shall be paid under the provisions of this section unless the claimant establishes his right thereto by written records showing entitlement thereto.

3.44.130 Actions to collect.

Any tax required to be paid by any transient Under the provisions of this chapter shall be deemed a debt owed by the transient to the City. Any such tax collected by an operator which has not been paid to the City shall be deemed a debt owed by the operator to the City. Any person owing money to the City under the provisions of this chapter shall be liable to an action brought in the name of the City for recovery of such amount.

3.44.140 Deficiency determinations.

If the City's Chief Financial Officer is not satisfied with a return filed by an operator or the amount of the tax required to be paid to the City pursuant to a return, the City's Chief Financial Officer may compute and determine the amount required to be paid upon the basis of the facts contained in the return or upon the basis of any information within his possession or that may come into the City's Chief Financial Officer's possession. One or more deficiency determinations may be made of the amount due for any period. The City's Chief Financial Officer shall give to the operator written notice of his determination in the same manner as provided in Section 3.44.090. The operator shall be entitled to apply for a hearing on the amount assessed pursuant to the procedure set forth in Section 3.44.090 and shall thereafter be entitled to

appeal to the City Council in accordance with the provisions of Section 3.44.100. The penalties and interest provided by Section 3.44.080 shall be applicable to the amount of deficiency established pursuant to this section.

3.44.150 Amendment or Repeal – Adjustment of Taxing Rate or Methodology.

This chapter may be repealed or amended by the City Council without a vote of the people of the City of Farmersville. However, as required by California Constitution Article XIIIC (Proposition 218), voter approval is required for any amendment or provision that would increase the maximum rate or methodology of any tax levied pursuant to this chapter. The people of the City of Farmersville affirm that the action shall not constitute an increase of the rate or methodology of the transient occupancy tax requiring subsequent voter approval:

1. The restoration of the rate of the tax to a rate that is no higher than the maximum set by this voter-approved chapter, if the City Council has previously acted to reduce the rate of the tax; and
2. An action that interprets or clarifies the methodology of the tax, or any definition applicable to the tax, so long as interpretation or clarification (even if contrary to some prior interpretation or clarification) is not inconsistent with the language of this chapter; and
3. The establishment of a class of person or service that is exempt or excepted from the tax or the discontinuation of any such exemption or exception (other than the discontinuation of an exemption or exception explicitly set forth in this chapter); and
4. Resuming collection of the tax imposed by this chapter, even if the City of Farmersville had, for some period of time, either suspended collection of the tax or otherwise failed to collect the tax, in whole or in part.

ARTICLE 4. SEVERABILITY.

Each of the provisions of this Ordinance is severable from all other provisions. If any chapter, section, subsection, paragraph, sentence, clause or phrase of this Ordinance is for any reason held by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remaining provisions of this Ordinance.

ARTICLE 5. NOT A CEQA PROJECT.

The City Council finds that this Ordinance is not subject to the California Environmental Quality Act (CEQA) pursuant to Sections 15060(c)(2) (the activity will not result in a direct or reasonable foreseeable indirect physical change in the environment) and 15060(c)(3) (the activity is not a project as defined in Section 15378) of the CEQA Guidelines, California Code of

Regulations, Title 14, Chapter 3, because it has no potential for resulting in physical change to the environment, directly or indirectly.

ARTICLE 6. EXECUTION AND EFFECTIVE DATE.

Following certification that Farmersville voters have approved this Ordinance, the Mayor shall sign it attesting to its adoption by the People voting thereon at the November 3, 2026 General Municipal Election, and the City Clerk shall cause the same to be entered in the book of original ordinance ordinances of said City; and shall cause the same, or a summary thereof, to be published as required by law.

This Ordinance shall take effect only if approved by a majority of the eligible voters of the City of Farmersville voting at the General Municipal Election to be held on November 3, 2026. Pursuant to California Elections Code section 9217, this Ordinance shall be deemed valid and binding and shall be considered as adopted upon the date that the vote is declared by the City Council and shall take effect ten (10) days after that date.

This Ordinance was approved and adopted by the People of the City of Farmersville at the City's November 3, 2026 statewide election.

_____

Mayor

ATTEST:

_____

City Clerk

RESOLUTION NO. 2026-016

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FARMERSVILLE, CALIFORNIA, CALLING FOR THE SUBMISSION TO THE VOTERS A QUESTION RELATING TO ENACTING A TEN PERCENT (10%) TRANSIENT OCCUPANCY TAX ON HOTEL OCCUPANCIES WITHIN THE CITY AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026

WHEREAS, the City Council of the City of Farmersville desires to submit to the voters a question relating to the enactment of a ten percent (10%) Transient Occupancy Tax ("TOT") on hotel occupancies within the City; and

WHEREAS, the General Municipal Election will be held on Tuesday, November 3, 2026; and

WHEREAS, the City Council desires to place the proposed Transient Occupancy Tax measure before the voters at said election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF FARMERSVILLE, CALIFORNIA, DOES HEREBY RESOLVE, DECLARE, DETERMINE, AND ORDER AS FOLLOWS:

Section 1. Pursuant to the laws of the State of California, the following question shall be submitted to the voters of the City of Farmersville at the General Municipal Election to be held on Tuesday, November 3, 2026:

Shall the measure enacting a ten percent (10%) Transient Occupancy Tax to be paid by hotel guests in the City of Farmersville, providing funding for general purposes such as city services, programs, economic development, and capital improvements, which is expected to generate an estimated $250,000 annually per hotel and remain in effect until repealed by the voters, be adopted?	YES
	NO

Section 2. The complete text of the proposed measure submitted to the voters shall be attached hereto as Exhibit "A."

Section 3. The vote requirement for passage of the measure shall be a majority (50% plus one) of the votes cast.

Section 4. The ballots to be used at the election shall be in form and content as required by law.

Section 5. The City Clerk is authorized, instructed, and directed to coordinate with the Tulare County Registrar of Voters to procure and furnish any and all official ballots, notices, printed matter, supplies, equipment, and paraphernalia necessary to properly and lawfully conduct the election.

Section 6. The polls for the election shall be open at 7:00 a.m. and remain open continuously until 8:00 p.m. on the day of the election, pursuant to Elections Code Section 10242, except as otherwise provided by law.

Section 7. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for municipal elections.

Section 8. Notice of the time and place of holding the election is hereby given and the City Clerk is authorized, instructed, and directed to provide any additional notice of the election in the time, form, and manner required by law.

Section 9. The City Clerk shall certify to the adoption of this Resolution and enter it into the book of original Resolutions of the City of Farmersville.

THE FOREGOING RESOLUTION WAS ADOPTED upon motion of Councilmember_____, Seconded by Councilmember_____, at a regular meeting on this _____ day of_____ by the following vote:

AYES:_____

NOES:_____

ABSTAIN:_____

ABSENT:_____

_____ _____

Tina Hernandez, Mayor Rochelle Giovani, City Clerk